

THE QUARTERLY

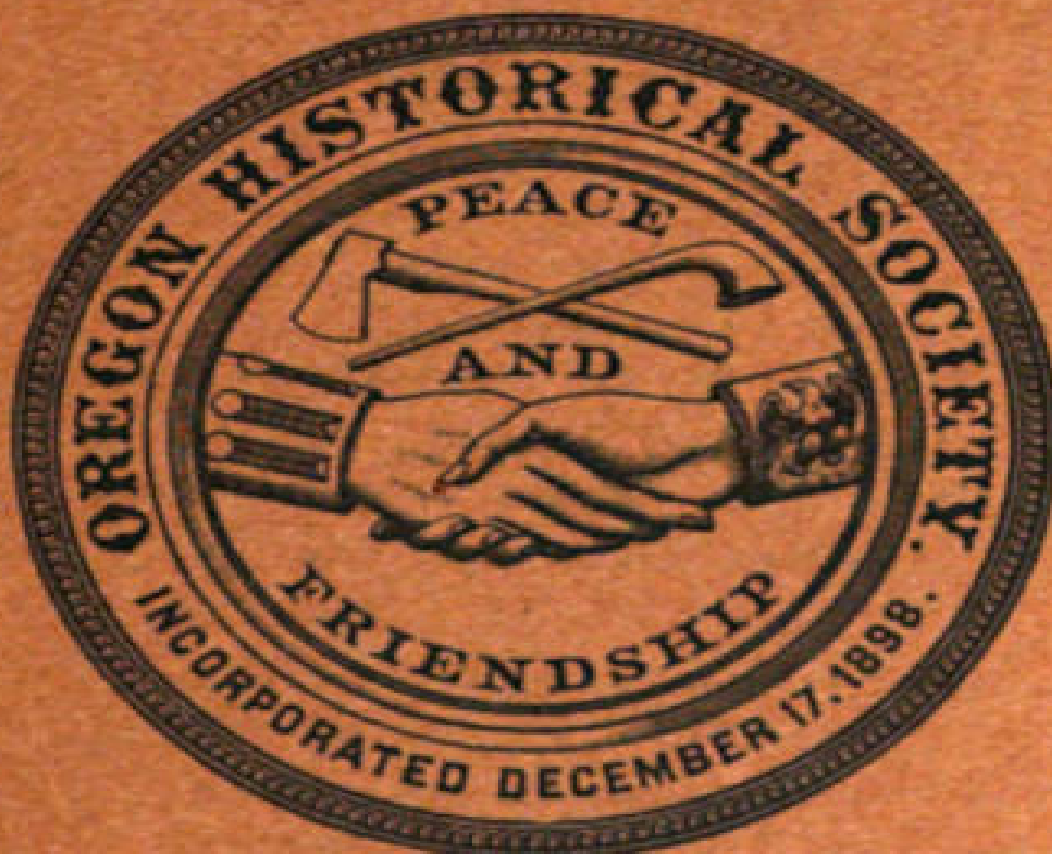
OF THE

OREGON HISTORICAL SOCIETY.

VOLUME I]

SEPTEMBER, 1900

[NUMBER 3



CONTENTS

THE OREGON QUESTION II.— <i>Joseph R. Wilson</i>	215
REMINISCENCES OF HUGH COSGROVE— <i>H. S. Lyman</i>	253
REMINISCENCES OF WM. M. CASE— <i>H. S. Lyman</i>	269
THE NUMBER AND CONDITION OF THE NATIVE RACE IN OREGON WHEN FIRST SEEN BY WHITE MEN— <i>John Minto</i>	286
INDIAN NAMES— <i>H. S. Lyman</i>	316
DOCUMENTS—Oregon articles reprinted from a file of the <i>N. Y. Tribune</i> , 1842.	327
Letter by William Plumer, Senator from N. H.	336

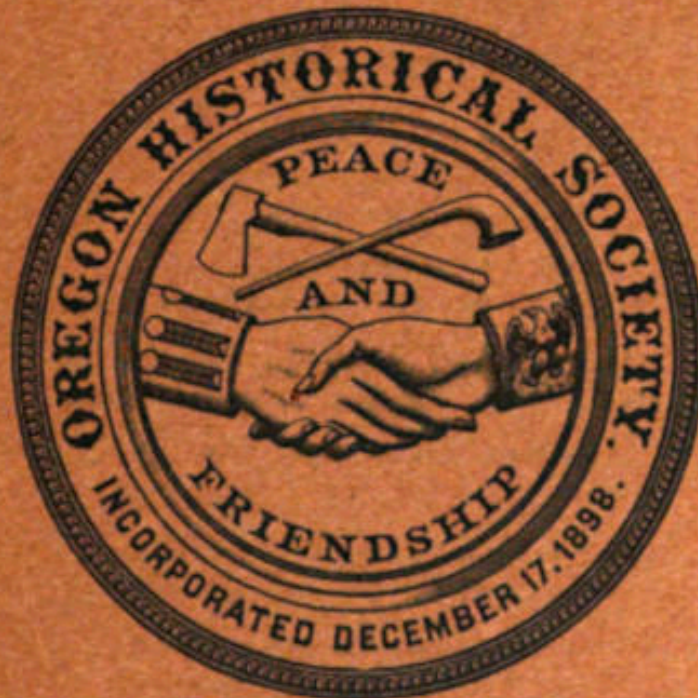
PRICE: THIRTY-FIVE CENTS PER MONTH, ONE DOLLAR PER YEAR

THE QUARTERLY OF THE OREGON HISTORICAL SOCIETY.

VOLUME I]

SEPTEMBER, 1900

[NUMBER 3



CONTENTS

THE OREGON QUESTION II.— <i>Joseph R. Wilson</i>	213
REMINISCENCES OF HUGH CONGROVE— <i>H. S. Lyman</i>	220
REMINISCENCES OF WM. M. CASE— <i>H. S. Lyman</i>	230
THE NUMBER AND CONDITION OF THE NATIVE RACE IN OREGON WHEN FIRST SEEN BY WHITE MEN— <i>John Minto</i>	236
INDIAN NAMES— <i>H. S. Lyman</i>	316
DOCUMENTS—Oregon articles reprinted from a file of the <i>N. Y. Tribune</i> , 1842.	327
Letter by William Plumer, Senator from N. H.	336

PRICE: THIRTY-FIVE CENTS PER MONTH, ONE DOLLAR PER YEAR

The Project Gutenberg eBook of The quarterly of the Oregon Historical Society, Vol. 1, No. 3, September, 1900

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The quarterly of the Oregon Historical Society, Vol. 1, No. 3, September, 1900

Author: Oregon Historical Society

Release date: May 3, 2020 [eBook #62009]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/62009

Credits: Produced by Gísli Valgeirsson and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This book was produced from images made available by the HathiTrust Digital Library.)

*** START OF THE PROJECT GUTENBERG EBOOK THE
QUARTERLY OF THE OREGON HISTORICAL SOCIETY, VOL. 1, NO.
3, SEPTEMBER, 1900 ***

THE QUARTERLY

OF THE

OREGON HISTORICAL SOCIETY.

VOLUME I]

SEPTEMBER, 1900

[NUMBER 3



CONTENTS

THE OREGON QUESTION II.— <i>Joseph R. Wilson</i>	<u>213</u>
REMINISCENCES OF HUGH COSGROVE— <i>H. S. Lyman</i>	<u>253</u>
REMINISCENCES OF WM. M. CASE— <i>H. S. Lyman</i>	<u>269</u>
THE NUMBER AND CONDITION OF THE NATIVE RACE IN OREGON WHEN FIRST SEEN BY WHITE MEN— <i>John Minio</i>	<u>296</u>
INDIAN NAMES— <i>H. S. Lyman</i>	<u>316</u>
DOCUMENTS—Oregon articles reprinted from a file of the N. Y. <i>Tribune</i> , 1812.	<u>327</u>
Letter by William Plumer, Senator from N. H.	<u>336</u>

PRICE: THIRTY-FIVE CENTS PER MONTH, ONE DOLLAR PER
YEAR

THE OREGON HISTORICAL SOCIETY

ORGANIZED DECEMBER 17, 1898

H. W. SCOTT	PRESIDENT
C. B. BELLINGER	VICE-PRESIDENT
F. G. YOUNG	SECRETARY
CHARLES E. LADD	TREASURER

GEORGE H. HIMES, Assistant Secretary.

DIRECTORS

THE GOVERNOR OF OREGON, *ex officio*.

THE SUPERINTENDENT OF PUBLIC INSTRUCTION, *ex officio*.

Term Expires at Annual Meeting in December, 1900,
H. W. SCOTT, MRS. HARRIET K. McARTHUR.

Term Expires at Annual Meeting in December, 1901,
F. G. YOUNG, L. B. COX.

Term Expires at Annual Meeting in December, 1902,
JAMES R. ROBERTSON, JOSEPH R. WILSON.

Term Expires at Annual Meeting in December, 1903,
C. B. BELLINGER, MRS. MARIA L. MYRICK.

The Quarterly is sent free to all members of the Society. The annual dues are two dollars. The fee for life membership is twenty-five dollars.

Contributions to *The Quarterly* and correspondence relative to historical materials, or pertaining to the affairs of this Society, should be addressed to

F. G. YOUNG,

Secretary.

EUGENE, OREGON.

Subscriptions for *The Quarterly*, or for the other publications of the Society, should be sent to

GEORGE H. HIMES,

Assistant Secretary.

CITY HALL, PORTLAND,
OREGON.

VOLUME I]

SEPTEMBER, 1900

[NUMBER 3

THE QUARTERLY

OF THE

OREGON HISTORICAL SOCIETY.

THE OREGON QUESTION.

II.

The conventions of 1824 and 1825 marked the formal and final withdrawal of Russia as claimant to the sovereignty of the Oregon country, or of any part of it. The convention of the former year pledged her withdrawal as claimant against the United States, that of the latter year as claimant against Great Britain. The boundaries of the territories in question were thus finally determined, and the parties to the dispute were reduced to the two nations by whom the question at issue was ultimately to be decided.

It was a great step taken toward settlement when the claims of all nations but Great Britain and the United States were eliminated from the question. But elimination of claims was not the only respect in which progress towards settlement had been made during the period which closed with the convention between Great Britain and Russia. The ten years between the treaty of Ghent and this convention show a substantial approach to agreement between Great Britain and America. The events of the year 1818 in particular mark this approach. This year, so important in the history of the relations between Great Britain and America, opened with the issue of the order of January 26 by the British government for the restitution of Fort George, the post at the mouth of the Columbia, which, under the name of Astoria, had been taken possession of by the British early in the late war. This order, which was formally carried out in October of that year, gains in significance the more closely the whole history of the case is examined. Astoria, it will be remembered, was the name of the trading post established in 1811 by the Pacific Fur Company, of which John Jacob Astor, of New York, was founder and chief stockholder. It was nominally an American company, and was established under the American flag; but of the party of thirty-three that landed April 12, 1811, to form the settlement, all except

three are said to have been British subjects. On the twelfth day of November, 1813, in the absence of Mr. Astor's agent, who was an American, Mr. McDougall, his sub-agent, a British subject, representing himself and the other partners present, likewise British subjects, signed the bills of sale, and delivered up Astoria to the Northwest Company, a British company. One month later, Captain Black, of the British navy, in the sloop-of-war, *Racoon*, arrived in the *Columbia*, and took possession of Astoria in the name of his sovereign, and in honor of his sovereign changed the name to Fort George. He seems to have been chagrined not a little to find that, instead of the glory of battering down an American fort, nothing awaited him but to take peaceful possession in the name of his king of a British settlement.

By the first article of the treaty of Ghent, "all territory, places, and possessions whatsoever, taken by either party from the other during the war" should be restored. In view of the history just given, it is not strange that the British government, when called upon by the United States to make restitution of Astoria in accordance with this article of the treaty, objected, on the ground that the place was already a British settlement when taken possession of by a British officer. And yet, in the course of the negotiations that followed, Great Britain yielded this point, and through her representative, Lord Castlereagh, "admitted, in the most ample extent, our right to be reinstated, and to be the party in possession while treating of the title." Accordingly, October, 1818, the order first issued January 26 preceding, was executed, and Fort George was formally handed over to an American officer specially sent to the *Columbia* to receive it, and once more the American flag floated over this British settlement.

This act of restitution, under these circumstances, can hardly be regarded as less than a concession on the part of Great Britain, a concession the full significance of which appears only when the act of restitution is taken in connection with the convention of joint occupation entered into by the two governments that year, and with certain intimations made by the British Plenipotentiaries in the conferences which led up to that convention. It was in this convention that the boundary between the two countries west from Lake of the Woods to the Rocky Mountains on the forty-ninth parallel was agreed upon. In the preliminary conferences the representatives of Great Britain insisted that the boundary west of the Rocky Mountains should be

settled at the same time with the boundary eastward; that the two should stand or fall together. In response to this wish, the American representatives proposed that the same line of the forty-ninth parallel be extended westward to the Pacific. This the representatives of Great Britain refused to accept, nor would they themselves propose a line; but they did intimate that the Columbia River itself was the most convenient boundary that could be adopted, and that they would not agree to any boundary that did not give to Great Britain a harbor at the mouth of the Columbia River in common with the United States. The American representatives not consenting to this, after further proposals and counter proposals, none of which were acceptable to both governments, it was finally agreed to adopt the now celebrated plan of joint occupation as that plan is embodied in the third article of the convention of that year.

Thus it is that the order of the British government for the restitution of Astoria at the opening of the year 1818, taken in connection with all the circumstances of the case, and the convention of joint occupation made by the two governments at the close of the year, taken in connection with concessions in conferences made by both parties, make this year an era in the history of the Oregon Question. In particular, two important lines had been proposed and discussed, each proposal showing an important concession on the part of the party making it, and each line proposed practically setting a limit for the future, in its direction, to the territory that remained in question. For it may safely be said that from this time the extreme limits of the claims of the several parties were fixed; that henceforth the United States would not press their claim to territory north of latitude 49°, nor would Great Britain press hers to territory south of the Columbia. The territory longer in question lay between these two lines, and it is doubtful if ever after this year there was a time when the question might not have been settled by Great Britain's consenting to the line of the forty-ninth parallel, or by the United States' consenting to that of the Columbia. With these limits to their several claims practically agreed upon by Great Britain and the United States, and a plan of joint occupation adopted at the close of the year 1818, it remained only to eliminate claims of other nations to the territory in order to reduce the question to its simplest terms. This elimination, as we have seen, was effected by the conventions of 1819, of 1824, and of 1825, the last of which left Britain and America free to settle the question of sovereignty between themselves.

The conditions of the Oregon Question at the close of the period ending 1825 were, upon the whole, not unfavorable to America. It is true Great Britain was the party in possession at this time through the settlements of the Hudson's Bay Company, but when it is remembered that these settlements were made even before the more important concessions of the conventions were made, these concessions are only the more strongly significant of the disposition of the government of Great Britain to treat fairly, at least, the claims of America. It is especially significant of this disposition that the settlement at Fort George was abandoned in the spring of 1825 by the British company in the expectation that the Americans would speedily occupy it, and, though the Americans failed at once to occupy it, it was left by the British unoccupied for five years, as if they were waiting for the Americans to come and claim their own. When we remember Britain's well known doctrine, of occupation within a reasonable time as necessary to establish full title to lands claimed on the ground of prior discovery and exploration, this can hardly be regarded as else than an invitation on the part of Britain to the United States to come and make good their title to at least that part of Oregon that lay south of the Columbia.

Occupation had been attempted, it will be remembered, in the case of the establishments of the Pacific Fur Company at Astoria and other points on the south and east of the Columbia. The whole conduct of England in regard to these establishments, made for the purposes of trade, goes to show that she regarded them as belonging to a legitimate mode of occupation, the right of which she not only assumed to herself, but was ready to allow to America. The failure of the settlements and their ultimate abandonment as a mode of American occupation were due to the accidents of war, not to the interference of diplomacy. The convention of 1818, of joint occupation, was the embodiment of no new principle, but simply the formal assent of both parties to a principle of occupation assumed by America in the Astoria settlements, and by Great Britain in those in the valley of the Columbia, and by each tacitly allowed to the other.

In 1821, however, three years after the convention of joint occupation, a movement was begun in the Congress of the United States toward an occupation of the territory in dispute, of a very different character, which, if it had actually been adopted as a measure enjoined upon the executive, and once been attempted to be carried out, would have met from Great Britain a

very different response. In the house of representatives, December 10, 1821, on motion of Mr. Floyd, of Virginia, a committee was appointed to inquire into the expediency of occupying the Columbia River and the country adjacent thereto; and the committee had leave to report by bill or otherwise. Later in the same session this committee reported a bill providing for the occupation of the mouth of the Columbia. The occupation contemplated by this bill was to be, first of all, military occupation, or, as one of the advocates of the bill wished to make it by amendment, "an occupation by military force only, with some encouragement to settlers." The view of the territorial rights of the United States in that region on which the bill was based was briefly and clearly put by another of its advocates: "The bill under consideration does not attempt a colonial settlement. The territory proposed to be occupied is already a part of the United States." The convention of joint occupation of 1818 left the question of sovereignty of the entire territory westward of the Rocky Mountains in abeyance. All occupation, therefore, of any part of this territory, to be lawful under this convention, must be of such a nature as to leave the question of sovereignty to be settled by agreement of the powers participant in the convention. Whatever rights either of the two parties to the convention had, or conceived that it had, by the act of entering into the convention it agreed, so long as the convention was in force, neither to assert sovereignty, nor to do any act in the territory covered by the convention that could be justly construed as an act of sovereignty. What acts the two powers might lawfully do under the convention were not clear at first, but it is difficult at this day to understand how anyone who looked carefully into the question could have failed to see that the acts contemplated in this first bill providing for occupation were not such as could lawfully be done under the convention. The same may be said of all the measures proposed in congress in regard to the occupation of the territory during the earlier period of the convention. There were men in congress who saw the unlawful character of each measure as it was proposed, and opposed it on this ground. Others joined these actively, on the ground that the Oregon Territory, if settled, because of its distance and the barriers which separated it from the United States, never could become a part of the union. To these were added enough who based their opposition on other grounds to defeat every such measure, either in the senate or in the house, or, as was the case in the early history of congressional agitation, in both houses of congress.

This early discussion in congress of our interests in Oregon, though it failed to reach any practicable plan of occupation, was not without valuable results. It served to clarify the minds of men in congress, and out of it, on the nature of the question involved, and through the information brought out and published in the course of the debates and reports went far toward enlightening the public mind on the character and resources of the territory in dispute. In the course of the negotiations that preceded the convention of 1818, and led up to it, Mr. Adams, as Secretary of State, in a letter of instructions to the American Plenipotentiaries, had expressed his government's low estimate of the interests involved in the Oregon Question. "It may be proper," he then wrote, "to remark the minuteness of the present interests, either to Great Britain or to the United States, involved in this concern, and the unwillingness, for this reason, of this government to include it among the objects of serious discussion with them."

Such words, written on the eve of the first congressional agitation of the question, could hardly have been written at the close of that discussion. For at that time the Oregon Question had become a matter of widespread interest, and both government and people were disposed to include it among objects of serious discussion. Agitation of the question in congress had the further effect of bringing the two governments to make another attempt to effect a settlement by convention. In 1824, when measures providing for occupation had been discussed in congress for three years, Mr. Adams, Secretary of State, wrote that though the government was aware that the convention of 1818 between the United States and Great Britain had four years to run, the President was of the opinion that the present was not an unsuitable moment for attempting a new and more definite adjustment of the claims of the two powers in question; that the Oregon Territory was a country daily assuming an aspect political, commercial, and territorial of more and more interest to the United States. Negotiations were at this time renewed between the two governments, but failed to issue in any agreement. Two years later they were resumed, on motion of the British government, but the two governments adhering substantially to their several positions of 1818, no settlement was reached. The third article of the convention of 1818 was, however, renewed for an indefinite period. In the communications of Mr. Clay to Mr. Gallatin during this period of negotiation, there is manifested an increase of interest in the question on the part of the American government, even over that of two years before.

The depth of this interest and the source of its inspiration appear from various expressions of these official communications. "The President," Mr. Clay writes, "is anxious for a settlement on just principles. Such a settlement alone would be satisfactory to the people of the United States, or would command the concurrence of the senate." "Much better," he continues, "that matters of difference should remain unadjusted than be settled on terms disadvantageous to the United States, and which, therefore, would be unsatisfactory to the people and to other departments of government."

From these words, and words of like tenor, it is evident that from this out an interested people and an alert congress will have part in shaping the policy of the government on the Oregon Question. It is to be noted, too, that the government of the United States did not advance its demands beyond the terms proposed at first, nor longer minimized the interest of the question to itself, and that it took a firmer stand on the boundary proposed. The Secretary of State now wrote of the line of latitude 49° as a concession on the part of his government, and boldly declared that as such it was an ultimatum.

After the renewal, in 1827, of the third article of the convention of 1818, with a provision for its indefinite continuance, or its abrogation by either power on due notice, the subject drops out of congress for a period of ten years, but only to return at the end of that time on the demand of that voice which, as we have just observed, the administration of Mr. Adams had already heard and attended to. This interval is an important period in the history of the Oregon Territory. The two governments stand stubbornly each on the boundary line of its own proposal, the United States for the line of latitude 49°, Great Britain for the line of the Columbia, seemingly making no approach to an agreement. Other influences, however, were at work preparing the way for final settlement, and determining the lines on which that settlement should be made.

The ten years between the renewal, in 1827, of the convention of 1818, and the resumption of the discussion of the subject in congress in the year 1837, present a new phase of the Oregon Question, and may be termed the period of early American settlement. In thus designating this period, the settlement of Astoria in 1811 has not been forgotten. It has already been shown that, though projected and supported by an American capitalist, and made under

letters from the American government and the protection of the American flag, that settlement was scarcely entitled to be called an American settlement; that whatever of American character it had in its inception it lost two years later in its transfer to a British company and to the protection of the British flag. The settlement of Astoria, even as a British settlement, was not of a permanent character. It contributed, it is true, a few settlers to later communities as they were established, but by far its greatest contributions to the settlement of the Oregon Question was in the diplomatic transfer which it was the occasion of under the terms of the treaty of Ghent. It did serve under the provisions of that treaty to secure to the United States the valuable concession from Great Britain of their right to be in possession of this position on the south bank of the Columbia, pending the final settlement of the question of sovereignty over the territory. As a permanent American settlement, however, it has no place in the history of Oregon.

There is reason, therefore, in making the period of early American settlement begin with the period mentioned. No actual settlement, it is true, was made at the very first of this period, but about this time the question of colonizing the region of the Columbia River began to be seriously agitated in various parts of the United States. A company having this end in view was organized about this time in Boston, and another in New Orleans, while in various parts of the country the propriety of forming such organizations was seriously discussed. Every effort was made by these societies, and by individuals whose interest in the subject had been awakened, to obtain and disseminate such information as should awaken popular interest in the territory and further the ends of its colonization.

The first enterprise that followed from this agitation, was that of Nathaniel J. Wyeth, of Boston, for the establishment of a settlement for trade and agriculture on the Lower Columbia. After the failure of a first attempt in 1832, Wyeth succeeded in the year 1834 in planting a small settlement on Wapato Island, at the junction of the Willamette with the Columbia. Untoward circumstances and disaffection among his followers defeated his first attempt, and sent him back to the east, after two years of gallant struggle, feeling that his second was far from successful. His settlement, while it has had in some sense an unbroken continuity, and has contributed of its members to the subsequent settlements in Oregon, can hardly be said to have had the character of a permanent colony. The largest results of

Wyeth's enterprise are rather to be looked for in the contribution he made in various ways to the furtherance of other enterprises than his own.

Substantially the same may be said of the enterprise of Hall J. Kelley, the leading promoter of one or more of the emigration societies already mentioned. He contributed materially to the ultimate settlement of the territory by his persistent and widespread agitation in the east, and later in some measure by bringing into the Willamette Valley a small band of men, some of whose number became permanent settlers. No colony, however, was planted in this region under his leadership, and he did not himself finally make Oregon his home.

The American settlements in Oregon that have thus far been mentioned, were organized primarily for the purpose of trade, and that, too, trade of a character that was not likely to bring into the country and permanently establish there colonists that should become rooted to the soil. Traders and trappers might in time abandon their pursuits as such, and, attaching themselves as individuals to a settled community, become useful members of that community, as more than one such did in the early history of Oregon, but no aggregation of such men, brought together for their own peculiar purposes, was likely to become an organic society, with powers of life and growth.

The American settlements in Oregon thus far lacked the first essential to the planting even of the germs of a state. In no one of them was there so much as one American home, nor were there the elements of one. An American white woman had not yet set foot on Oregon soil, nor any woman, save the native and her offspring. It was now more than a score of years since that first settlement at Astoria, but Oregon still waited the coming of that institution that lies at the foundation of every American state, the American family.

About the time of Wyeth's first expedition, there appeared in Saint Louis what had somewhat of the character of a delegation from the native tribes west of the Rocky Mountains. It consisted, as the story runs, of four or five men from the Nez Perce tribe, who, having heard of the White Man's God and his Book, were come to ask that men be sent to teach their people of these. The story of this strange and interesting mission was taken up by the press and spread throughout the country. It gave a new impulse and a new

direction to the efforts of missionary societies for the evangelization of the native tribes. One of the first fruits of this new interest in missions was the organization by the Mission Board of the Methodist Episcopal Church of a mission to the Oregon Indians. This mission, as finally constituted, consisted of the Reverend Jason Lee, as leader, and his nephew, Daniel Lee, and three lay members, Cyrus Shepard, Philipp L. Edwards, and Courtney M. Walker, five in all, a mission of men only. Sending their goods and supplies by sea to the Columbia, they joined Wyeth in the spring of 1834, and traveled with him overland, reaching Vancouver about the middle of September of that year. After personal examination of the field by the leader, it was determined that the mission should settle in the Willamette Valley, and a spot was fixed upon not far from the site of the present town of Salem, and within easy reach of a settlement already made by some retired employees of the Hudson's Bay Company. The object of the mission was the evangelization of the Indian tribes of the valley, seemingly with little thought at first of contributing to the colonization of the country. This mission, indeed, the first among the Oregon Indians, like the trading settlements that preceded it, lacked as first constituted one essential to permanence. It did not include the family. The mistake was doubtless early seen by the missionaries themselves, but was not remedied until the arrival of the first reinforcement to the mission, more than two years later. From the coming of the first reinforcement in the spring of 1837, and the constitution thereupon of several families, the mission began to take on somewhat of the character of a permanent settlement, and with still further reinforcements a year or two later, became the nucleus of the first permanent American colony in the Willamette Valley.

In the meantime a second mission had been established east of the Cascade Mountains. In the summer of 1836, Dr. Marcus Whitman and Mrs. Whitman, the Rev. Henry H. Spaulding and Mrs. Spaulding, and William H. Gray, under commission from the American Board of Commissioners for Foreign Missions, crossed the Rocky Mountains, and settled among the native tribes of the Upper Columbia. The primary object of this mission, as was that of the mission to the tribes of the Willamette Valley, was the evangelization of the Indians. But this mission, unlike that, was based from the first on the family, and thus brought with it this first condition of permanence. Within its limited number were the two first American white families to settle in Oregon, and were included for a period of six months or

more the only American white women dwelling west of the Rocky Mountains. From its original number, and more largely from its later reinforcements, the mission made valuable contributions to the body of permanent settlers, but perhaps its greatest contribution to the history of Oregon was one incidental to its primary work as a mission, in its showing to America and the world by its own first treading of the same, that there was an open pathway for American families through the Rocky Mountains into the valley of the Columbia. This mission thus demonstrated for the first the practical contiguity of the Oregon Territory to the United States. It was this contiguity as it was subsequently made patent that was, almost more than all else, to influence the Oregon Question to an issue favorable to the United States. Whitman seems to have seen this from the first. The settlement of the Oregon Question came to appear to him simply a matter of prior settlement of the territory from contiguous states, and such prior settlement was a question only of an open pathway through the intervening mountains. To his mind, therefore, the first duty of the American government was not in military occupation of the region in question, nor in the extension over it of civil jurisdiction, but in making the pathway thither already pointed out, a plain and safe highway for American settlers. This done, the people would do the rest.

In the year 1837, after a silence of nearly ten years, the Oregon Question was again moved in congress. Many things had happened in the interval since its last appearance there to make it certain that with its reappearance the question had come to abide until settled. The settlements already mentioned, small as they were, were not inconsiderable in their influence at the east. They were the centers of ties that reached back into various influential communities in the states of the union; nor were the men who composed the settlements slow to avail themselves of every such tie to make and influence public sentiment at home. The same energy and indomitable spirit which they manifested in reaching the new land were shown again in their efforts to enlighten the country in regard to the land they had come to possess, and to persuade others to join them in their efforts to take and keep possession of it. Never was a new country so much talked of, nor its excellencies so enthusiastically set forth, when those who could do so from experience were so few. From the time the first real American colony was founded in Oregon, and there had been time for word from it to reach the states from which its members had come, neither the

government nor the country was ever allowed for long at a time to forget the existence of Oregon, of the Oregon colony, or of the Oregon Question.

In the late summer of 1835, President Jackson, through certain letters, as it appears, of William N. Slacum, a paymaster in the navy, who at that time was spending some months in Alexandria, Virginia, on sick leave, became strongly of the mind that the bay of San Francisco should be in the possession of the United States. He almost immediately, on receipt of these letters, directed Mr. Forsythe, Secretary of State, to write to Anthony Butler, then in Mexico for the purpose of negotiating the purchase of Texas, enlarging his instructions so as to include the purchase of so much of the possessions of Mexico on the coast as would embrace the bay of San Francisco. A little later the same year President Jackson commissioned Slacum to visit the North Pacific Coast, directing him at the earliest opportunity after arriving in the Pacific, "to proceed to and up the Oregon, to obtain specific and authentic information in regard to the inhabitants of the country, the relative number of whites and Indians; the jurisdiction which the whites acknowledged; the sentiments entertained by all in respect to the United States and the two European powers having possessions in that region; and finally all information, political, statistical, and geographical, that might prove useful and interesting to the government." The commission thus specifically and somewhat peremptorily given was fulfilled with promptness and energy, and, though the chief by whom the commission had been given had retired from office before Mr. Slacum's return, the country was not deprived of the results of the investigation. In December, 1837, through a memorial presented by Mr. Slacum to congress, and by congress ordered to be published, coincident with the recurrence of the discussion in congress of the Oregon Question, congress and the country had the detailed results of this first official inquiry into the condition and prospects of the settlements in the region of the Columbia.

Throughout this period when the question was in abeyance, individual explorers, American and British, had from time to time visited this region and had returned to write for eager readers of what they saw and learned in the strange new land, until a piqued interest on two continents was alert for the next news from Oregon. The publication at the close of this period of Irving's *Astoria* in 1836, and of his *Adventures of Captain Bonneville* in 1837, books which were themselves the offspring of the widespread and

romantic interest already felt, served in turn to make that interest still more keen, and to awaken it in minds where else it had never been felt.

But greatest among all the forces that had been at work during this period toward the solution of this question was one that had worked silently and unobserved, but persistently and effectively, and withal wholly in the American interest. In the ten years that followed the extension of the convention of 1818, more than three hundred thousand people, immigrants from foreign lands and emigrants from older states, had crossed the Mississippi and settled in the two states of Arkansas and Missouri, and the territory of Iowa. At the close of this period, when congress again took up the question more than half a million of people were settled between the Mississippi River and the Rocky Mountains, and of these more than three hundred thousand were in Missouri alone, the state which stood upon the highway to the new country, and nearest to the gate of entrance. The fact of this great array of American families fast moving toward the intervening barrier, and all but pressing upon it, with myriads of other families in the older states following after, taken together with the door open no farther than it had been proved to be open by the few American families that had passed through, should have been enough to assure any calm observer of what the issue was to be. There were such observers whom it did so assure, and their calm faith and clear forecast stood the nation in good stead in the exciting debates that were to follow.

The second period of the discussion of the Oregon Question in congress began late in the year 1837, near the close of the first session of the twenty-fifth congress. It was opened a few days before adjournment by each house calling upon the President "to furnish at an early period of the next session any correspondence that may have taken place between the government and foreign powers in relation to our territory west of the Rocky Mountains." To both these resolutions the President, promptly on the opening of the next congress, replied that no correspondence whatever had passed between the government of the United States and any other government in relation to that subject since the renewal in 1827 of the convention of joint occupancy. It thus appeared that while the subject had been in abeyance in congress it had been equally so in the executive department of the government, and it was not destined to reappear in this department for a further period of more than four years. Meanwhile the subject in one form or another was seldom

absent for long at a time from the discussions of congress. This was especially true of the senate, where, in the person of Dr. Lewis F. Linn, senator from Missouri, the title of the United States to Oregon and the cause of the citizens of the United States who had settled there found an earnest advocate and a zealous and indefatigable friend. Measures were introduced in both houses of congress, by Doctor Linn in the senate, and by Mr. Cushing in the house, looking to the occupation and settlement of Oregon. These first measures elicited but little debate, and failed of reaching action. They did, however, by bringing out reports from the executive and committees, get before congress and the country a large amount of information on the subject. In the house, after a year of unavailing effort to reach action on the measures introduced, the subject remained again in abeyance for two or three years. In the senate, however, chiefly through the active interest of Doctor Linn, new measures were introduced each session which, though failing in every case of reaching the point of action, gained more and more the ear of the senate and a wider attention in the country. In each of the measures as thus far proposed there was some vitiating clause or provision which to the calmer and clearer minds in the senate made it inconsistent with the terms of the existing convention. It was open to congress to abrogate that convention by giving due notice to Great Britain, and so to open the way for a larger action on the part of the government, and resolutions to this effect were introduced, but neither congress nor the country as yet was ready for this step. Not yet clear as to what action should next be adopted, congress was not prepared to remove this bar to hasty or ill-advised measures. Thus far the convention had certainly been in the interests of peace, and had not seriously interfered with the progress of settlement.

The year 1842 was an important one in the history of the Oregon Question. Early that year Doctor Linn had returned to the contest in the senate with new zeal and determination, and other friends in congress and out of it came to his support. His bill, as heretofore, was a bill for the adoption of means for the occupation and settlement of the Oregon Territory, and the extension of the jurisdiction of our courts over our citizens settled there, with a provision promising a large grant of land to actual settlers. This and previous bills had been prefaced by a declaration that the United States held its title to the Oregon country valid, and would not abandon it. The year opened with better promise of favorable action than heretofore; the

preamble, while its adoption was strongly opposed by the majority in the senate, had brought from even those who opposed its adoption the declaration that it was a just expression of the sentiment of the country, while the provision for the land grant to settlers, though opposed for the present on the ground that it was not consistent with the convention, was acknowledged by all to contemplate but a just compensation, which should be made in due time, to pioneers who had taken the hardships and risks of early colonization. The bill at this session had been presented under most favorable auspices; the select committee to which it had been referred was of great influence in the senate, and had unanimously instructed their chairman to report the bill with the recommendation that it pass. And yet, though thus auspiciously introduced, for some reason as the months of the session went on it failed of being vigorously pressed. We have the explanation of this in Senator Linn's own words, spoken in the senate on the last day of August, the closing day of the session. After speaking of the favorable circumstances attending the introduction of the bill, Senator Linn continued: "It was thus placed in its order upon the calendar, but upon its coming up for consideration as a special order Lord Ashburton arrived from England, to enter upon a negotiation touching all points of dispute between the two countries, boundaries as well as others, Oregon as well as Maine. In this posture of affairs it was considered indelicate, not to say unwise, to press the bill to a decision while these negotiations were pending. They are now over, and a treaty is published to the world between the United States and Great Britain, in which it seems that the question of the Oregon Territory has been deferred to some more remote or auspicious period, for an ultimate decision." In conclusion Mr. Linn said that he was confident that there were majorities in both houses for this bill; and he felt equally certain that it would have passed at this session but for the arrival of Lord Ashburton, and the pendency of the negotiations. He gave notice that he would deem it "his imperative duty" to bring in at an early day of the coming session this same bill, and press it to a final decision. That the decision would be favorable he did not entertain the slightest doubt, and he took pleasure in making that opinion public "for the satisfaction of all those who might take an interest in this beautiful country, the germ of future states to be settled by the Anglo-American race, which will extend our limits from the Atlantic to the Pacific Ocean."

There is a tone of confidence in the words with which Senator Linn dismissed the bill of 1842 that was not wholly unwarranted. As he spoke he was aware that the largest colony of American settlers that had ever set out for Oregon, a colony of staunch men and women, who had been encouraged to set out by the assurances which his bill had given, were then steadily nearing their destination. He was aware, too, that in the brief time since the publication of the Ashburton treaty, in which no mention was made of the Oregon boundary, congress and the country had shown a temper that promised well for his measure when next it should be introduced.

The interval between the publication of the treaty, August 9, and the reassembling of congress in December, was one of earnest and often heated discussion, not only of the provisions of the treaty, but of its one noted omission. No satisfactory reason had yet been given why the Oregon boundary had not been included with that of Maine. This omission, taken together with intimations that soon reached the public that the two governments were again engaged in negotiations on this subject, began to awaken, in some quarters, at least, fears for the result. The nature and ground of these fears, as far as they were capable of being defined, may be seen in the declaration of the legislature of Illinois, prefixed to resolutions on the Oregon Question presented to congress early the next session. That declaration was, that "the safety of the title of the United States [to Oregon] was greatly endangered by the concessions made in the late treaty in relation to the boundary of Maine, by her rights not being persisted in and made part of said treaty, and will be more endangered by longer delay."

In his annual message to congress, December 6, 1842, President Tyler, after giving as the reason for the omission of the Oregon boundary from the late treaty the fear that its discussion might imperil the treaty as a whole, went on to express the purpose of the administration to urge upon the government of Great Britain the importance of an early settlement of this question. A few days later, the senate passed a resolution calling upon the President to communicate to the senate the nature of any "informal communications" that might have passed between the Secretary of State and the Special Minister of the British Government on the question of the Oregon boundary. To this resolution the President, in his message of December 23, answered that measures had been already taken in pursuance of the purpose expressed in his annual message, and, under these circumstances, he did not

deem it consistent with the public interest to make any communication on the subject. But neither the President's expressed purpose, nor his subsequent declaration that measures in pursuance of that purpose had already been taken, stayed the progress of measures in congress.

On the nineteenth of December, in accordance with his promise made at the close of the last session of congress, Mr. Linn introduced a bill of like import with that of the former session. This bill was referred to a select committee, of which Mr. Linn was chairman, and was soon reported back to the house, when it was made a regular order for immediate discussion. The discussion was continuous and earnest for more than a month, when by a vote of twenty-four to twenty-two it passed the senate. A vote of reconsideration failing to pass, the bill went to the house, and was referred to the Committee on Foreign Relations, of which John Quincy Adams was chairman, by whom, a few days later, it was reported to the house with the recommendation that it should not pass. Thus the bill failed of finally becoming a law, and doubtless many who advocated it in the senate, on cooler reflection, felt that it was well that it did fail. In a wider view, however, the measure was not a failure, for it served its object well, though not in the way its supporters intended. Few bills ever have called out from the senate a more earnest or an abler discussion. The best talent of the body was enlisted in the discussion, the spirit in which the debate was carried on was broad and patriotic, and for the progressive illumination of the subject under discussion the debate has never been surpassed. When it closed there remained little to be said. The future course of congress in the matter was practically settled in this debate and the action which followed; while in the course of the discussion, the pathway by which the question was ultimately to reach its solution was again and again pointed out. This was done by no one more clearly than by Calhoun, who spoke twice at length in opposition to the measure. He opposed the bill with the whole force of his power of keen analysis and convincing logic, but he opposed it because he saw in its adoption certain defeat of the very object which he in common with the promoters of the bill desired to reach. He counseled patience, and a strict abiding by the terms of the convention, at the same time assuring his countrymen that time and the sure movement of population toward and into the region in question were certain to bring the solution desired. So accurately did he foresee and describe the course by which the question

would advance to its final settlement, that his words at this day read rather like an epitome of history than what they were, a forecast of events.

American colonists in Oregon at that moment were not indeed sufficiently numerous to promise a speedy fulfillment of this prophesy. All told, they scarcely numbered five hundred, men, women, and children, and included not more than two score American families. They were enough, however, to test the excellence of the land, and enough of them had entered through the gateway of the mountains to prove that the country was accessible to men and women who were serious in their purpose of reaching it. Then, too, at the moment when Mr. Calhoun was speaking, at various centers throughout the union and on the frontiers of Missouri, a colony was organizing of men and women of the best stuff of which new states are made, setting their faces toward the new land with the full purpose of making it their home. This colony, nearly double in its numbers the total American population then in Oregon, before the year ended, successfully passed the barrier of the mountains, and with its whole great caravan safely reached the valley of the Columbia. Thus, sooner perhaps, and with a stronger and bolder movement than Mr. Calhoun himself had expected when he spoke, the onward movement of population began to make good the words of his prophesy.

When, in February, 1843, the senate bill failed in the house, it was understood that the two governments were in communication on the subject of the Oregon Territory. It was this understanding more than anything else that led to the suppression of the Oregon bill in the Committee on Foreign Relations. No proposal had as yet been made in official form, but it is now known that the President and his secretary had a definite policy in mind, and that while desirous of checking any measures in congress which might hinder the negotiations which they aimed to bring about, they felt obliged to conceal the nature of their policy with the utmost care, for fear of arousing opposition in congress and the country. As it was, there was no little dissatisfaction in congress with the treaty which had just been negotiated by Webster and Lord Ashburton. Like most treaties on boundary lines, this treaty was a settlement by compromise. Many citizens from the section affected by the new boundary line, and enemies of the administration from all sections, were prompt to say that the secretary had yielded too much—that he had allowed the United States to be overreached in the negotiations. The friends of Oregon took alarm. They thought they saw in the omission of

the Oregon boundary from the treaty an occasion for another compromise, in which there should be a surrender of territory justly claimed by the United States. That this fear was widespread in the states of the Mississippi Valley appears from the resolutions of state legislatures presented to congress early in the following session. In more than one set of these resolutions it was manifest, through plain statement or through implication, that apprehensions for Oregon had been awakened by the terms of settlement of the boundary line of Maine. There was reason for uneasiness in the well known leaning of Mr. Webster toward certain commercial advantages to be got by treaty from Great Britain, and his low estimate of the value of the Oregon Territory to the United States. We now know that for this and for other reasons the prevalent apprehensions of the time in regard to the Oregon Territory were not groundless. The evidence is now at hand that the President and his secretary did contemplate a treaty with England which would involve a surrender of territory on the North Pacific Coast such as no administration hitherto had been willing for a moment to consider. The compensation, however, for the territory surrendered was not, as was then surmised, to be found wholly, if at all, on the Atlantic Coast.

It will be remembered that the Oregon Question was not the only question that agitated the country at this time. There was the Texas question, well nigh as old as that of Oregon, lately become pressing through events in Texas itself, and through the growing importunity of the Southern States. Then, too, there was the California question,—not a question of as widespread and popular interest as either of the others, but one which for a decade or more had been of growing interest to a narrow but intelligent circle. There was a popular demand for the assertion and maintenance of our rights in Oregon; there had come to be a popular demand for the annexation to the union, or the reannexation, as some chose to put it, of Texas; while as far back as the second administration of President Jackson there had been a desire on the part of farseeing statesmen to secure from Mexico the cession to the United States of so much of California as to include the bay of San Francisco. England was interested in Texas, was even thought by many in the United States to be contemplating making it a colony; England had influence with Mexico, her capitalists having loaned the Mexican government to the amount of \$50,000,000 on security of lands in New Mexico, California, and other of her possessions; and England was urgent in all negotiations on the Oregon boundary that she be allowed free

navigation of the Columbia, if not that that river be her southern boundary. In the United States, the slave states were desirous of Texas; the Western States pressed for the Oregon Territory at least to the forty-ninth parallel, while there was a growing desire in commercial centers in the North Atlantic States to have in American possession what was then regarded as the only ample and safe harbor on the North Pacific Coast south of the Straits of Fuca. Out of these various interests in England and America, President Tyler and Mr. Webster, his Secretary of State, shaped the policy of the administration. It is not likely that the President and his secretary were in entire accord on the details of the policy; but both alike were desirous that the administration should be signalized by a settlement through negotiation of the questions then pressing upon the country. In its earlier and more comprehensive form, the policy of the administration included all the questions that have been mentioned. These it sought to settle by a comprehension of them all in a tripartite treaty between the United States, Mexico and Great Britain, whereby it was hoped to secure from Mexico the recognition of the independence of Texas, and the cession to the United States of her possessions on the Pacific down to the thirty-sixth parallel. In compensation for her good offices in these matters, the United States was to yield to Great Britain all claim to the Oregon Territory down to the line of the Columbia River. It was thought that the large acquisition thus secured of territory south of the forty-second parallel would compensate for the loss of Oregon north of the Columbia, while the northern and southern sections would be reconciled to the treaty by the large acquisition it secured north and south, respectively, of parallel thirty-six.

The plan of the administration included a special mission to England, on which it was expected Mr. Webster should be sent, that he might be the better able to negotiate the treaty; and, failing this, a mission to China, to which Mr. Everett, then Minister to England, should be transferred, thus still accomplishing the desired end by allowing Mr. Webster to take his place in London. The mission to England failed in committee; the mission to China passed in congress, but failed to carry Mr. Webster to England, through Mr. Everett's unwillingness to accept the China mission. With his failure to reach England at this time, Mr. Webster's hope of being able to effect a settlement of the questions pending between the two governments died; this having been his main reason for remaining in President Tyler's cabinet, his resignation shortly followed. And thus, with Mr. Webster's

resignation from the cabinet, passed forever all danger of a settlement of the Oregon boundary on a line below the forty-ninth parallel.

There were causes operating to produce this result which do not appear in this narrative. Even if the mission to England had succeeded, and Mr. Webster had effected the tripartite treaty as he desired, it is doubtful if it would have been accepted by the senate. Events were occurring contemporaneously with the movement of these measures that rendered it probable that the treaty, if made, would have failed of confirmation. Certain it is that the early spring of that year found the President less disposed to press for the settlement of the Oregon boundary contemplated in this scheme, and with less reason to expect the approval of congress or the country in any such settlement. Events had been rapidly making such a settlement impossible. A notable one, the great emigration of 1843, has already been mentioned. There were others precedent to this.

Some years previous, the Rev. Jason Lee, while on a visit to the United States, had visited Washington, and made a strong representation of the need of a representative of the United States in Oregon. As a late response to this plea, in the spring of 1842, the government had sent a sub-agent to look after the interests of the Indians in Oregon. The appointment fell upon Dr. Elijah White, who himself had been a member of the Willamette mission. Doctor White had at once set out for Oregon, in May of that year, and was accompanied by a colony of more than one hundred persons, assembled largely through his influence, the first real colony of American families, aside from the missions, to enter the Oregon Territory. By the end of the winter of 1843, the government was in possession of Doctor White's report of the safe arrival in Oregon of himself, and this colony; of the satisfaction of the colonists with what they found there; and of the favorable condition and prospects of the settlers already there. Some of the colonists themselves had written to newspapers at their old homes giving good accounts of the new land, and urging their friends to join them there. And these letters, wherever found, were copied by all the great newspapers, north and south, because, as their editors sometimes apologetically added, "every one was eager to hear the latest news from the Oregon country." About the same time with the arrival of the report of the government's own agent, there appeared in Washington, fresh from his winter ride from Oregon, Dr. Marcus Whitman, of the Walla Walla mission. In repeated

interviews with the President, and members of his cabinet, as well as with members of congress, Doctor Whitman presented earnestly the practicability of large companies of emigrants with their cattle and wagons reaching Oregon through the mountains, and urged the government to encourage such caravans by making the way thither as easy and safe as possible. What was thus said in the ears of government, and through the public press, was talked by many voices in crowded assemblies, at village stores, and at firesides throughout the country, from the frontiers of Missouri to the coast of Massachusetts, and from Portland, Maine, to New Orleans. The people were thus already aroused, even before the failure in congress of the administration's plans for the settlement of the boundary question. The country of the Oregon had been made to appear inviting for seekers for new homes in all parts of the land, and colonization of it by the direct route through the Rocky Mountains practicable to the nation at large, so that the state of the public mind at this time boded ill to any plan of settlement that proposed a surrender of any part of the territory to which the United States was believed to have a well grounded claim. The time for bargaining away any part of the Oregon Territory, south of the forty-ninth parallel and the Straits of Fuca, had now fully passed. No one was quicker to see and appreciate the changed conditions of the question, than was the President himself. Naturally desirous that his administration should have the honor of settling this long pending question, he continued, through his succeeding secretaries, to endeavor to bring the negotiations to a successful conclusion; but henceforth his proposals were based upon a return to the former position of the government on the line of the forty-ninth parallel. After a proposal of the line of the Columbia our government was at a disadvantage in renewing proposals based upon the more northern line, while the changed temper of congress and the country obliged to a firmer standing to the old position, once it was resumed. The President's best efforts, however, to bring negotiations to a happy issue failed, and his administration closed with the question still pending. The negotiations of this time show a zealous purpose on the part of the President to effect a settlement, but show no real progress toward that end. The same may be said of the measures in congress of this period. Discussion of the question had been resumed in the house, and went on in the senate, but since negotiations on the part of the government with a view to a speedy settlement were almost continuously pending, congress was induced to

refrain from any action that might thwart or trammel the government in its efforts.

It has already been pointed out in this paper that the correspondence between the two governments precedent to the convention of 1818, pointed to the line of the forty-ninth parallel as the final position of our government in this question. In subsequent negotiations between the United States and Great Britain, this line came to be regarded as in some sort traditional with our government, and as such became increasingly influential in shaping the proposals of succeeding administrations. We have just seen how under pressure of considerations external to the Oregon Question the administration of Mr. Tyler had been momentarily in danger of yielding this our traditional line for one to the south, on the Columbia. We have now to see how under pressure of another sort the government under the administration of Mr. Polk came near abandoning this traditional position for a line farther to the north.

In 1824, in a treaty between the United States and Russia, the line of 54° and $40'$ was fixed as the limit of the claim of the United States northward as against Russia, and of Russia's claim southward as against the United States. This line was thenceforth considered as the northern limit of the Oregon Territory. In the course of negotiations with Great Britain it had been mentioned as the northern limit of our claim, but the claim of the United States to this line had never been pressed by the government. In the same paragraph in which the claim had been mentioned by our government, it had been abandoned for the lower line of the forty-ninth parallel. In the year 1842, however, after the treaty of that year had been concluded and made public, in the reaction caused by what was regarded as a surrender of rights and just claims on the part of our government, a disposition was manifested in some sections of the country, particularly in the west, to recur to the extreme northern line, and to press our claim to the Oregon Territory fully up to that limit. This disposition found expression in some of the resolutions of the state legislatures which were presented to congress at its next session. Later, it found more distinct and emphatic expression in resolutions adopted by public meetings and local conventions in various parts of the country held for the purpose of promoting the occupation and settlement of the Oregon Territory. The agitation thus carried on in the latter part of 1842, and the earlier months of 1843, culminated in a convention

held in Cincinnati in July of the latter year. This convention from its size and representative character had somewhat of national importance. The circular calling the convention issued from Cincinnati under date of May 23, was sent to representative men far and wide over the union, and was given publicity by the leading journals of the day. In this circular the object of the convention was formally stated to be, "to urge upon congress the immediate occupation of the Oregon Territory by the arms and laws of the republic, and to adopt such measures as may seem most conducive to its immediate and effective occupation, whether the government acts or not in the matter." It will be proposed, the circular continues, "to base the action of the convention on Mr. Monroe's declaration of 1823, 'that the American continents are not to be considered subject to colonization by any European powers.'" The convention in a session of three days discussed thoroughly the various aspects of the subject on which it came together, and concluded by adopting a declaration of principles which was signed by the chairman, Col. R. M. Johnson, and ninety other delegates, representing six states of the Mississippi Valley. The first of the principles adopted defined clearly what the convention understood by the Oregon Territory which it was sought to occupy and settle, asserting, as it did, the right of the United States from the line of latitude 42° to that of 54° and 40'. Among letters read in the convention from prominent men unable to be present was one from Mr. Cass, in which he declared that no one would be present who would concur more heartily with the convention in the measures that might be adopted than should he; he would take and hold possession of the territory of the Pacific Coast, come what might. It is not difficult to see in the utterance of the Cincinnati convention, when taken in connection with the political weight of the convention itself, the origin of that party war-cry which was to make the presidential campaign of the following year so celebrated in our history. Here was a constituency united in a solemn pledge, which could not well be ignored in the estimate of political forces. It was an influence to be bid for, and what more natural than that it should be bid for, as it was bid for, by the party seeking a means of reconciling northern and western voters to its more distinctly southern policy of the annexation of Texas?

On becoming President, Mr. Polk seems not to have felt himself bound by the extreme statement of his party's position on the Oregon Question. The tone of his inaugural is rather more conservative upon this subject than

might have been expected from the circumstances of his election. His position, as stated in this paper, was sufficiently advanced, however, to alarm the British government. In a letter of April 3, addressed to Packenham, British Minister at Washington, Lord Aberdeen said: "The inaugural speech of President Polk has impressed a very serious character on our actual relations with the United States, and the manner in which he has referred to the Oregon Question, so different from the language of his predecessor, leaves little reason to hope for any favorable result of the existing negotiation." And yet Mr. Polk, shortly after entering upon office, took up the negotiation as he found it then pending, and made an honest effort to effect a settlement upon the compromise line of his predecessors. In explanation of his course, in his annual message to congress, December following, he said: "Though entertaining the settled conviction that the British pretensions of title could not be maintained to any portion of the Oregon Territory, upon any principle of public law recognized by nations, yet, in deference to what had been done by my predecessors, and especially in consideration that propositions of compromise had been thrice made by two preceding administrations to adjust the question on the parallel of the forty-ninth degree of latitude, and in two of them yielding the free navigation of the Columbia, and that the pending negotiations had been commenced on the basis of compromise, I deemed it my duty not abruptly to break it off. In consideration, too, that under the conventions of 1818 and 1827 the citizens and subjects of the two powers held a joint occupancy of the country, I was induced to make another effort to settle this long pending controversy in the spirit of moderation which had given birth to the renewed discussion."

In the letter above referred to, Lord Aberdeen, notwithstanding his fears, directed Mr. Packenham to submit again to the new Secretary of State the proposal for arbitration which he had submitted to his predecessor, if conditions for such a proposal seemed favorable. On Mr. Packenham's informing Mr. Buchanan, the new Secretary of State, of his instructions to this effect, Mr. Buchanan expressed the hope that a satisfactory settlement of the question might yet be effected through negotiation. In accordance with this expressed hope, Mr. Buchanan, a few days later, submitted a proposal of the line of the forty-ninth parallel extended through to the Pacific, offering to Great Britain any port or ports on Vancouver's Island she might choose. This proposal was rejected by Mr. Packenham, without

first submitting it to his government, in a paper in which, after declaring the proposal offered less than was offered by the United States in 1826, he concluded: "The undersigned trusts that the American Plenipotentiary will be prepared to offer some other proposal for the settlement of the Oregon Question more consistent with fairness and equity, and with the reasonable expectations of the British government." This paper was presented on July 29; on August 30 Mr. Buchanan presented to Mr. Packenham a carefully prepared paper, in which, after reviewing the position in which the President found himself in reference to the question on coming into office, and setting forth the motives which had actuated him in making the present proposal in spite of his personal views on the subject, he called the British Minister's attention to the fact that the President's proposal had been rejected by him in terms not over courteous, without even a reference of it to his government, and concluded: "Under such circumstances, I am instructed by the President to say that he owes it to his own country, and to a just appreciation of her title to the Oregon Territory, to withdraw this proposition to the British government, which was made under his direction; and it is hereby accordingly withdrawn."

We have it on the authority of Mr. Polk's diary that the concluding paragraph is of the President's own wording; that Mr. Buchanan urged the President so to couch his answer as to encourage the British government to make an offer on their part; that this the President positively declined to do, saying that if the British government wished to make an offer they must do so on their own responsibility. It was a matter of regret on the part of Lord Aberdeen, on hearing of the matter, that this proposition of our government had not been referred by Mr. Packenham to his government. Later, Mr. Packenham, on receipt of a communication from Lord Aberdeen, approached Mr. Buchanan with a view of getting from the President encouragement to present another proposition on behalf of Great Britain. This, though repeatedly urged to do so by Mr. Buchanan, the President firmly refused to give. And thus the question stood at the convening of congress in December.

The President's message had, on the question of the Oregon Territory, been prepared with special care. The several paragraphs bearing on this subject were read and discussed in cabinet, and amended, until they embodied the President's policy in its maturest form. Again Mr. Polk was besought by the

Secretary of State to soften the tone of his message on this point, but he refused, preferring, as he said, "his own bold stand." After reviewing briefly the history of negotiations on the question under his predecessors, and noting that these had uniformly been maintained on the part of the United States on the compromise line of the forty-ninth parallel; and after stating somewhat particularly the reasons that had induced him to take up the negotiations as he found them pending on his entrance to office, and to continue them on the same line in spite of his own personal convictions that the United States had a just claim to the whole of the Oregon Territory, the President proceeded to recommend to the favorable consideration of congress five measures, all of which he thought clearly within the right of the United States under the terms of the convention of joint occupancy. The first and capital one of these recommendations was, that congress authorize the President to terminate the convention of joint occupancy by giving the British government the required notice. In accordance with this recommendation a resolution to that effect was promptly introduced in congress, and thereupon the Oregon Question was thought by all to have assumed a grave aspect. Many men within congress, and without, some of them Mr. Polk's best friends and advisors, felt that while the measure was clearly within the terms of the convention it was neither wise nor safe at that time to adopt it. To every representation, however, of this view of the case made to the President, he returned the uniform answer that in his judgment the notice should be given.

The Secretary of State was not alone in his alarm at the President's bold stand on this question. He, with others, finding themselves unable to induce the President to change his attitude on this point, and finding that in the present mood of congress the resolution of notice was likely to pass, used every endeavor to induce him to consent to a renewal of the proposition for compromise on the line of the forty-ninth parallel, or to invite such a proposal from the British government.

On the twenty-fifth of February, Mr. Calhoun, now returned to the senate, called upon the President and met there Senator Colquitt, of Georgia. Mr. Calhoun urged upon Mr. Polk that it was important that some action of pacific character should go to England upon the next steamer, and asked the President's opinion of the policy of the senate's passing a resolution in executive session, advising the President to reopen negotiations on the basis

of the forty-ninth parallel. Mr. Polk was unwilling to advise such a course; he did, however, finally tell Mr. Calhoun and Mr. Colquitt, in confidence, as members of the senate, that if Great Britain should see fit to submit a proposition for compromise on that line, he should feel it his duty, following the example of Washington on important occasions, to submit the proposition to the senate confidentially for their previous advice. This course had already been considered in cabinet two days before, on the reading of a dispatch from Mr. McLane, our Minister in London, and had met with the almost unanimous approval of the members.

The house had already, on the ninth of February, passed the resolution of notice; the senate yet delayed and debated. But from the time when the President consented to encourage a further proposition of compromise from the British government by promising to submit the same to the senate for advice, events moved rapidly to a favorable conclusion. April 17 the resolution of notice passed the senate. Formal notice was addressed by our President to the Minister in London on the twenty-eighth of April, was received by him in London on the fifteenth of May, and on the twentieth of May was by him presented to Lord Aberdeen. Two days before receiving the notice, however, on the eighteenth of May, Lord Aberdeen had addressed a note to Mr. Packenham, at Washington, instructing him to offer a compromise on the basis of such a modification of the line of the forty-ninth degree of north latitude as would give to Great Britain Vancouver's Island, and allow her the free navigation of the Columbia for a limited term of years. On the tenth of June, in a message to the senate, the President submitted this proposal, and asked the senate's previous advice. This was formally given in a resolution adopted June 12, by a vote of thirty-eight to ten, in which the senate advised the President to accept the proposal of the British government. A treaty based upon this proposal was concluded and signed on the fifteenth day of June by the representatives of the two powers. This treaty, on the following day, was laid before the senate by the President, for its approval, and three days later was confirmed without amendment. This convention provided for the extension of a line on the forty-ninth degree of north latitude, westward from the Rocky Mountains, to the middle of the channel which separates the continent from Vancouver's Island, and thence southerly, through the middle of said channel, and of Fuca Straits, to the Pacific Ocean.

It was found by the commissioners appointed to determine a line in accordance with this convention that in one part of the strait there were two recognized channels, an easterly one, by the Straits of Rosario, and a westerly one, by the Canal De Haro. The commissioners failing to agree as to which of the channels was the channel contemplated by the treaty, the determination of this portion of the line was left in abeyance. It remained so until the year 1871, when the joint high commission appointed to adjust sundry differences between the two governments, met in Washington. By certain articles of a convention, concluded at this time it was agreed by the representatives of the two powers, to submit to the Emperor of Germany the question as to which of the two channels was the more in accordance with the treaty of June 15, 1846, the commissioners pledging their respective governments to accept his award as final. The Emperor of Germany submitted the question to three experts, Doctor Grimm, Doctor Goldschmidt, and Doctor Kiepert. In accordance with the report of these distinguished scholars, the Emperor of Germany, on the twenty-first of October, 1872, rendered his decision, that the line by way of the Canal De Haro was the one most in accordance with the treaty. This decision was accepted by the two governments, and the unsettled portion of the boundary line determined in accordance with it.

Thus, after the vicissitudes of more than three-quarters of a century of debate and negotiations, with the determination of this last detail, the Oregon Question reached its full and final decision.

JOSEPH R. WILSON.

REMINISCENCES OF HUGH COSGROVE

By H. S. LYMAN.

Hugh Cosgrove, an Oregon pioneer of 1847, and a representative of the men of some means, who established the business interests of the state, is of Irish birth, having been born in County Cavan, North Ireland, in 1811. Although now in his ninetieth year, he is still of clear mind and memory, and recalls with perfect distinctness the many scenes of his active life. He is still living on the place which he purchased, in 1850, on French Prairie, near Saint Paul. He is a man of fine physical proportion, being in his prime, five feet, eleven inches tall, and full chested, broad shouldered, and erect, and weighing about one hundred and eighty pounds. He has the finely moulded Celtic features, and genial expression of the land of Ulster, and enjoys the fine wit and humor for which his race is famous. His father was a farmer, but learning much of the opportunities in Canada, concluded to cross the ocean to improve the conditions of himself and his family. It was about that period when assisted emigration from East Britain was in vogue, and mechanics of Glasgow, Scotland, were loaned 10£ sterling for each member of the family, to take up free homes in Canada; the loan to be returned after a certain time. The Cosgroves not being from that city, did not enjoy this loan, but determined to take advantage of the other opportunities offered all the immigrants, which were a concession of one hundred acres of land free, and an outfit of goods necessary to setting up a home in the new land.

Taking passage on a lumber ship, the Eliza, of Dublin, at a rate of 3£ each, and furnishing their own victualing, they made a speedy and prosperous voyage, some considerable glimpses of which remain in the memory of Mr. Cosgrove, after the lapse of eighty years. He remembers well, also, the breaking up of the old home, the auction of the family belongings, and the

general sense of hope and abandon with which they cut loose from the shores of the old world. None of the family, probably, had any considerable appreciation of the vast race movement to which they as units of society were answering, but felt keenly the bracing effect of increased energy and enthusiasm which that movement imparted.

In Canada they hastened to secure their possessions, locating the one hundred-acre lot of their own, in the hard timber woods out on the boulder-sprinkled soil of lower Canada, in the Dalhousie township, within five miles of Lanark, and obtaining a free government outfit at the government store at Lanark. Here young Hugh spent the most of his boyhood, helping to clear the farm, becoming an expert axeman, burning the hard wood, from the ashes of which was leached the potash that paid for the clearing; and also getting his education at the free school. He recalls these as very happy years, and the pride and joy that all the family took in owning their own home did very much to form his character on a more liberal and progressive plan than could have been had in old world conditions. At the age of twenty-one he was married to Mary, a daughter of Richard Rositer,—“a glorious good man,” of Perth. Learning at length that land of a better quality, less stony, was vacant “out west,” a move was made to Chatham, in Canada West, as then known. Having a “birth-right claim,” as it was called, to one hundred acres, and finding that he could make a purchase adjoining of one hundred acres of “clerical land,” the young farmer laid out his two hundred-acre farm, and made buildings to improve it. But learning that land was still better the farther west one went, he proceeded as far as the Detroit River.

But just at this juncture all things were thrown in confusion by the uprising of the “Patriots,” the extent of whose organization was not known. There was great alarm felt, and the Canadian militia were likely to be called out. Now the Cosgroves had been duly taught that “the Yankees” were terrible people, almost ready to eat innocent people from the old country. But now that the Canadian side looked warlike, Mrs. Cosgrove said to her husband: “Very likely now you will be called out with the militia, and I will be left alone; why not cross over into the United States, and begin there?” She was acquainted, moreover, with a family in Detroit. Mr. Cosgrove acted upon the suggestion, and this led into a very much larger field of operations.

They found life on the American side much more intense and extensive, and discovered that the Yankees, instead of being a species of man-eaters, were royal good fellows.

Having saved some money for a new start, he prudently looked about how to invest it so as to make increase as he crossed the line. He found at the custom house that duty on cattle was low. He bought cows, selling at \$10 each in Canada, which he disposed of in Michigan at as much as \$40 each,—his first “good luck.” This gave him some ready money to begin business.

Fortunately in disposing of his cattle he made the acquaintance of a Mr. Saxon, a business man of very high character, recently from New Jersey. He was, indeed, not only a strict business man, but strictly religious, and a crank in habits of morality, taking pains to advise young men against bad habits. By this Mr. Saxon, Cosgrove was interested in taking work, just being begun on the railway line from Detroit to Chicago, Illinois, then a landing place on the marshy shores of Lake Michigan. “Why not take a contract?” asked Mr. Saxon, who had himself the work of locating a twenty-mile section of the road; and offered all assistance necessary in making bids, and was willing to guarantee Cosgrove’s responsibility. By this great service a paying contract was secured of grading a section of road. The contract was profitable, and the ins and outs of business were learned—especially the art of how to employ and work other men profitably,—Mr. Saxon, the ever ready friend, frequently giving the young immigrant helpful advice.

Having saved something like \$5,000 from his operations, he was next visited by a coterie of eastern men who were coming west to mend their fortunes—to go to Chicago, and take a contract of excavating and filling on the great projected canal from Chicago to the Mississippi—a work only just completed at this day. It was then begun under state control. He soon discovered that he was the only capitalist in the number, and in order to save the job, bought out the main man, a Mr. Smith, who had a contract of \$80,000. This was finished to advantage, although the state suspended operations. Prices were excellent, some of the rock excavating being done at fifty to seventy-five cents, and rock filling at \$1.25 per square yard. Further contracts were taken, but in the course of time prices were forced down. In following up the railway development, a residence was made at Joliet, where he bought one hundred and sixty acres of land, on which much

of the city now stands. But two things acted as a motive to make him look elsewhere. One was the malaria of the Illinois prairie; the other was the report of Oregon.

A newspaper man by the name of Hudson, of the *Joliet Courier*, who had come to Oregon, wrote back very favorable accounts of that then territory, especially praising the equable climate. A number of Joliet men, among whom were Lot Whitcomb and James McKay, read these articles with interest, and finally made up their minds to cross the country to Oregon, a name that was to the old west about what the new world was to the old. Lot Whitcomb, a man of affairs, who afterwards made himself famous in Oregon as a steamboat man, thought Oregon would be a great place for contractors and men able to carry on large undertakings, as he heard that there were few such there.

In April, 1847, accordingly, a party of thirteen families were ready to start. Cosgrove had been trading during the winter, to get suitable wagons and ox teams. He preferred to make the eventful journey comfortably and safely, and lack nothing that forethought could provide. He did not belong to the poorer class, who had to make the trip partly on faith. Three well made, well built wagons, drawn each by three yoke of oxen—young oxen—and a band of fifteen cows constituted his outfit. He had young men as drivers, and his family was comfortably housed under the big canvas tops.

He now recalls the journey that followed as one of the pleasantest incidents of his life. It was a long picnic, the changing scenes of the journey, the animals of the prairie, the Indians, the traders and trappers of the mountain country; the progress of the season, which was exceptionally mild, just about sufficed to keep up the interest, and formed a sort of mental culture that the world has rarely offered. Almost all migration has been carried on in circumstances of danger and distress, but this was, although daring in the extreme, a summer jaunt, with nothing to vitiate the effect of the great changes in making out the American type.

The following particulars of the journey have the interest of being recalled by a pioneer now in his ninetieth year, showing what sharp lines the original experiences had drawn on the mind, and also being in themselves worthy of preservation. However much alike may have been the journeyings across the plains in general features, in each particular case, it was different from

all others, and no true comprehension of the whole journey, the movement of civilization across the American continent, can be gained without all the details; the memory of one supplying one thing, and that of another supplying another. The experiences of the Cosgroves were those of the pleasantest kinds, the better-to-do way of doing it, without danger, sickness, great fatigue, or worry, and with no distress.

After making the drive across Iowa and Missouri, in the springtime, when the grass was starting and growing, the Missouri River was crossed, waiting almost a week for their turn at Saint Joe, and then they were west of the Mississippi, with the plains and the Indian country before them. An “organization” was duly effected. Nothing showed the American character more distinctly than the impulse to “organize,” whenever two or three were gathered together. It was the social spirit. There was no lack of materials, as besides this party of thirteen families, there were hundreds of others gathering at Saint Joe, the immigration of that year amounting to almost two thousand persons. A train of one hundred and fourteen wagons was soon made up, and Lot Whitcomb was elected captain. Mr. Cosgrove says, “I was elected something. I have forgotten what it was”—but some duty was assigned to each and all, and the big train moved.

Almost immediately upon starting, however, they were met by some trappers coming out of the mountains, who said, “You will never get through that way; but break up in small parties of not over fifteen wagons each.”

It soon proved as the trappers said. The fondness of organization, and having officers, is only exceeded among Americans by the fondness of “going it on one’s own hook;” and this, coupled with the delays of the train, broke up Lot Whitcomb’s company in two days. In a company, as large as that, a close organization was next to impossible. A trifling break down or accident to one hindered all, and the progress of the whole body was determined by the slowest ox. When Mr. Cosgrove separated his three fine wagons, and active young oxen, and drove out on the prairie, Captain Whitcomb said, “that settles it. If Cosgrove won’t stay by me, there is no use trying to keep the company together.” With thirteen wagons, and oxen well matched, all went well.

Indians of many tribes were gathered or camped at Saint Joe, and followed the train along the now well traveled road. They were polite as Frenchmen, bowing or tipping their hats, which were worn by some, as they rode along. They expected some little present, usually, but were well satisfied with any article that might be given; and the immigrants expected to pass out a little tobacco or sugar, or some trifle.

There was but one affair with Indians that had any serious side. This occurred at Castle Rock, an eminence out on the prairie, some hundreds of miles from the Mississippi. Here the train was visited, after making the afternoon encampment, by a party of about forty mounted Pawnees, clothed only in buffalo robes. They seemed friendly, asking for sugar and tobacco, as usual. But as they rode off, they disclosed their purpose—making a sudden swoop, to stampede the cattle and the horses of the train. The young men of the train, however, instantly ran for the trail ropes of their horses, and began discharging their pieces at the Indians, who, perhaps, were more in sport than in earnest, or, at least, simply “saucing” the immigrants; and wheeled off to the hills, letting the stock go.

But this was not all of it, as the Pawnees soon overtook two men of the train who were out hunting, and, quickly surrounding them, began making sport, passing jokes, and pointing at the men and laughing to one another; and ended by commanding the alarmed and mystified hunters to take off their clothes, article by article, beginning with their boots. When it came to giving up their shirts, one of the white men hesitated, but was speedily brought to time by a smart stroke across the shoulders by the Indian chief’s bow. When the two white men were entirely disrobed, the Pawnees again made remarks, and then commanded them to run for camp; but considerately threw their boots after them, saying they did not want them. Much crestfallen, the two forlorn hunters came out of the hills, “clipping it as fast as they could go” to the train, which was already excited, and thought at first that this was a fresh onslaught of the savages. The men of the train, however, were not very sorry for the young fellows, as they were notorious boasters, and from the first had been declaring that they would shoot, first or last, one Indian a piece before they reached Oregon.

The animal life, as it gradually was encountered, was a source of great interest. The gentle and fleet, but curious, antelopes were the first game. Mr. Cosgrove had two very large and swift greyhounds, which were able to

overtake the antelopes. But the meat of these animals was not very greatly relished, being rather dry.

The wolves were the most constant attendants of the train, appearing daily, and howling nightly. These were the large gray wolves, much like our forest species; also, a handsome cream-colored animal, and the black kind, and most curious of all, the variety that was marked with a dark stripe down the back, crossed by another over the shoulders. Then the coyotes were innumerable, and yelped at almost every camp fire. Shooting at the wolves, however, was nothing more than a waste of ammunition, and these animals were at length disregarded. Even the greyhounds learned to let them severely alone, for though at first giving chase ferociously, they soon found a pack of fierce wolves no fun, and were chased back even more ferociously than they started out.

The cities of the prairie dogs were interesting places, and the tiny chirp, a yelp, of the guardian of the door, became a familiar sound. Mr. Cosgrove recalls shooting one of these, finding it much like a chipmunk, only of larger size.

But the great animal of the prairie was the buffalo. The vast herds of these grand animals impressed the travelers of the plains quite differently, almost always giving a shock of strange surprise. One immigrant recalls that his first thought at seeing distant buffaloes, but few in number, in the sparkling distance, was that they were rabbits. With Mr. Cosgrove's party there were indications enough of the animals. Indeed, the plains were strewn with the buffalo chips, and it was the regular thing, noon and evening, as they came to camp, for each man to take his sack and gather enough of them for the camp fire; and coming to the Platte Valley they found the region strewn with the dead bodies of the thousands of the animals, which had probably come north too soon, and were caught in the last blizzard of the winter; but no live buffaloes were seen. But at length, as the train crested a slope, and a vast expanse of prairie opened in view, Mr. Cosgrove looked over, and seeing what seemed brown, shaggy tufts thickly studding the distance as far as eye could reach, he exclaimed, "We shall have plenty of firewood now! No need of gathering chips tonight!" He thought the vast Platte Valley was covered with stunted clumps of brush-wood. One of the girls was near, however, and after looking, cried out, "See, they are moving!" Then first he realized it was a herd of buffaloes. Nor were they simply grazing; they were

on the run and bearing down on the train. The cry of “buffaloes!” was passed back. It was not altogether safe to be in the path of such an immense herd, and the train was quickly halted, the wagon pins drawn, and a band of hunters quickly went out on horseback to meet the host, and also to get buffalo meat. The herd divided, leaving the train clear and the oxen standing their ground. One part went off to the hills; the other took the fords of the Platte, making the water boil as they dashed through. Enough were shot to stock the train; yet the herd was so vast that at least four hours elapsed before the last flying columns had galloped by—like the last shags of a thundercloud. What a picture—thirteen families with their oxen and wagons, sitting quietly in the midday blaze, while a buffalo troop, perhaps one hundred thousand strong, or even more, dashed past on either side. The best method of preparing the buffalo meat was by jerking it, over a slow fire of sagebrush sticks; the meat being sliced thin, and dried in the smoke in one night. At a later time, when buffalo had become as familiar as cattle, however, the train was stopped by one single monarch. It was just at evening, and the man detailed to go ahead to find a good camping place was out of sight. A shot was heard, however, and the startled train was halted, and the king-pins were drawn, all ready for any emergency; for it might be Indians ahead.

The picket soon was seen, riding at top speed, and crying as he came, “Don’t shoot, don’t shoot!” and just behind him was an enormous buffalo, charging the whole train. The animal did not stop until within a few rods, and then only with lowered head, and huge square shoulders. The difficulty of shooting him without inducing him to make a charge, if not dropped, was at once apparent. But at length, at a signal, about fifteen rifle balls were poured into his front; and after a moment he began to reel from side to side, and then fell over. Even then no one dared to go and cut the throat, to bleed him; but after a time one cried, “I’ll do it!” and the deed was done. It required several yoke of oxen to make a team strong enough to drag him to camp, and his estimated weight was twenty-two hundred pounds.

The last buffalo meat was from an animal that had just been killed by a party of trappers near the divide of the Rocky Mountains. As for deer and elk, none of these were seen on the plains. Birds of the prairie were abundant, especially the sage hens, as the more arid regions were crossed; but the flavor of this fowl was too high for the ordinary appetite.

Rattlesnakes were innumerable, but no one of the train suffered from these reptiles except a girl. This occurred at Independence Rock. As the young lady was clambering among the crevices, she incidentally placed her hand upon a snake, which struck. Large doses of whiskey, however, soon neutralized the venom.

After crossing the divide of the Rocky Mountains to the headwaters of the Snake River, the numberless salmon of the streams become the wild food in place of the buffalo meat of the plains. At Salmon Falls there were many Indians of different western tribes taking the fish as they ascended the rapids. In consequence, the royal Chinook was sold very cheap; for a brass button one could buy all that he could carry away. Here occurred a laughable incident. The whole camp was almost stampeded by one wild Indian. He was a venerable fellow, dressed in a tall old silk hat, and a vest, and walked pompously as if conscious of his finery; his clothing, however, being nothing except the hat and vest. At his approach, the camp was alarmed. The more modest hastily retreated to their tents; and some of the men, angry that their wives should be insulted, were for shooting the inconsiderate visitor. A young married man, whose bride was particularly scandalized, was greatly exasperated. But the object of the old Indian was merely peaceable barter. He carried in each hand an immense fish; and Mr. Cosgrove, seeing his inoffensive purpose, bade the boys be moderate, and going out to meet him, hastily sawed a button from his coat, with which he purchased the fish, and sent the old fellow off thoroughly satisfied.

On the Umatilla, after crossing the Blue Mountains, with all their wonders of peak and valley, as they were camped beside the river, the immigrants were visited by Doctor Whitman and his wife, and Mr. and Mrs. Spaulding. Mr. Cosgrove remembers them all very distinctly. Doctor Whitman he describes as tall and well proportioned, of easy bearing, and hair perhaps a little tinged with gray; and very affable. Mrs. Whitman was remarkably fine looking, and much more noticeable than Mrs. Spaulding. Mr. Cosgrove has especial reason to remember the missionaries, because, himself not being well, and this circumstance being discovered by them, he was the recipient of various little delicacies, of fruit, etc., not to be had in the train. A trade was also made between himself and Whitman, of a young cow that had become foot-sore, and could go no further, for a very good horse. Doctor Whitman, says Mr. Cosgrove, "was a glorious good man;" and the news of

his massacre by the Indians a few months later, went over Oregon with a shock like the loss of a personal friend.

Mr. Spaulding gave notice of a preaching service to be held about six miles distant from the camp, and some of the immigrants attended. The coming of the Catholic priests to that region was alluded to in the sermon, and they were spoken of as intruders.

At The Dalles there was a division of opinion among the immigrants as to the best route to follow into the Willamette Valley; whether over the mountains or down the Columbia by bateaux to Vancouver. However, this was easily settled for Mr. Cosgrove's family. Word having reached Vancouver that there were immigrants arriving, bateaux were sent up and in readiness. The price asked for the service was moderate, and the voyage was made quickly and comfortably. The wagons were taken to pieces and loaded upon the boats, and the teamsters had no difficulty in driving the oxen by the old trail, swimming them across the Columbia.

James McKay, a traveling companion, not being able then—though afterwards a wealthy man—to employ a bateaux; built a raft, which brought him through safely. Others went over the mountains.

On arrival at Vancouver, Mr. Cosgrove found a small house, with a big fireplace, which he rented, and housed his family, feeling as happy as a king to be under a roof once more. Here he could leave his family safely while he looked over the country.

By the time that he reached the Cascades, the early autumn rains were falling gently, and at Vancouver they were continuing; but they seemed so light and warm as to cause little discomfort; and the Indians were noticed going around in it unconcernedly barefooted.

At one time Mr. Cosgrove was eagerly advised by Daniel Lownsdale to locate a claim immediately back of his own, on what is now included in a part of the Portland townsite. But the timber here was so dense, and the hills so abrupt that he saw no possible chance to make a living there, and decided to look further.

Valuable advice was given by Peter Speen Ogden, then governor of the fort. Mr. Cosgrove was quite for going down the river to Clatsop, so as to be by the ocean. Mr. Ogden said, however, "It depends on what you are able to

do. If you want to go into the timber, go to Puget Sound; if you want to farm, go up the Willamette Valley.”

Mr. Cosgrove decided that as he knew nothing of lumbering, but did know something of farming, that he had better proceed to the farming country.

Coming on up the Willamette Valley, he was met everywhere in the most friendly fashion; especially so by Mr. Hudson, the newspaper man of the *Joliet Courier*, who constrained him, “right or wrong,” to turn his cattle into a fine field of young wheat to pasture over night. Hudson was living a few miles above Oregon City, opposite Rock Island, and was a flourishing farmer. He went to the California mines, and was very fortunate, discovering a pocket in the American River bed, in a crease in the rocks, so rich that he dared not leave it, but worked without cessation a number of days, ordering his meals brought to him, at an ounce of gold dust each, and took over \$22,000 from his claim.

Meeting Baptiste Dorio, of Saint Louis, on French Prairie, he proceeded with him to look up farm lands. At Dorio’s a somewhat laughable incident occurred. It was, at that early day, the custom for all to carry knife and fork with them, and these were the only individual articles of table furniture. The meal, usually beef and potatoes, was placed on an immense trencher, hewed out of an oak log, and around this all sat, and each helped himself at his side of the trencher.

Mr. Cosgrove ate heartily of the fine beef, which, however, he noticed looked rather white. At the conclusion of the meal Dorio asked suddenly, “Which do you like best, ox beef or horse beef?” “I do not know that I could answer that,” said the fresh arrival, “as I have never yet eaten horse beef?” “Yes, you have,” said the Frenchman imperturbably; “that was horse beef that you have just eaten,”—a piece of information that nearly ruined Mr. Cosgrove’s digestion for the rest of the day.

He found the Canadian farmers ready to dispose of their places, and was besieged by many who had square mile claims to sell for \$100, or less, each; and with the fertile prairie, its deep sod, tall grass, and expanse diversified with strips of forest trees, or lordly old groves, he was very much pleased. Coming to Saint Paul he found entertainment at the Catholic mission, and by a Mr. Jones, who was employed then as foreman, he was furnished much valuable information. By the brusqueness of Father Baldu,

in charge of the establishment, he was, however, rather taken aback. When he was ready to go, and went to the father to tell him so, with the idea of offering pay for his entertainment, the reverend gentleman simply remarked, "Well, the road is ready for you." Nevertheless, with St. Paul he was well pleased. There was a church and a school, and a good place to sell his produce. He therefore purchased the section adjoining the mission, paying \$800,—two oxen and two cows, and included in the bargain was the use of a fairly good house.

He had some stout sod plows of much better make than those of the Canadians, and at once, as the winter was open, began to break the prairie, and sowed forty acres to wheat. His family were comfortably established, but met rather a severe shock as they went to meeting for the first time. With feminine interest and delight his wife and daughters brought out their best dresses and bonnets, as they would at Chicago or Joliet. Mr. Cosgrove himself selected his best suit for the occasion—he had three with him, a blue, and a gray frock, and a swallowtail coat. The swallowtail and a rather high silk hat, and the other accompaniments of full dress, was the suit that he chose. At the meeting, however, where the appearance of the strangers caused minute observation, the men all sitting on one side and the women on the other, there were no bonnets,—the women wore only a red handkerchief tied over the head; and the latest style bonnets from the east created not only admiration, but much suppressed—though not very well suppressed—merriment in the congregation.

On returning home Mrs. Cosgrove was very much dispirited, and exclaimed, "To think that I have brought my family here to raise them in such a place as this!" However, taking up the difficulty in a truly womanly way, she soon had the women of the neighborhood making sun-bonnets, and then instructed them how to weave wheat straw and make chip hats; and in course of time they even put on bonnets. Not so, however, with Mr. Cosgrove's swallowtail coat and silk hat. These were such a mark for ridicule that he never tried them again, at least in that circle; but found his blue frock good enough. Indeed, even to this day, swell dress is much despised among Oregon men.

However, the placid life of the Oregon farmer was not to be long continued. The California mines broke out, and Mr. Cosgrove was constrained to go along with the rest of the settlers. He made two trips, returning the first time

after a month's mining to spend the winter. The second time, which was prolonged to a stay of about twenty months in the mines, he made very successful, but occasion arising to sell his store in the mines for \$15,000, he finally decided to do so, and taking his dust, went down to San Francisco to look for a ship for the Columbia.

While at the bustling town he was induced to invest \$15,000 in a stock of goods, which he brought to Oregon, and set up a store at Saint Paul. Here he continued in business for a number of years, but says that he discovered he was not cut out for a merchant, and so in course of time fell back upon the farm.

The place upon which he is now living, which is part prairie and part wood land, of fine quality, is immediately adjoining his original square mile, which he sold, as under the donation act, but one square mile could be claimed.

REMINISCENCES OF WM. M. CASE.

By H. S. LYMAN.

William M. Case, a pioneer of 1844, who is still living on the donation claim taken by him in 1845 on French Prairie, was born in Wayne County, Indiana, not far from the Ohio line, in 1820. He is consequently now eighty years of age, but is still vigorous, of unimpaired memory, firm voice, and still master of affairs on his large farm of over one thousand acres. He is six feet tall, of wiry build, and rather nervous temperament, and very distinctively an American. In mind he is intensely positive of the most definite views and opinions, and has the peculiarly American qualities of fondness for concrete affairs. His hair and beard are now nearly snow white, and worn long; and his face is almost as venerable as that of the poet Bryant, which it somewhat resembles.

His life covers almost numberless interesting experiences, but is perhaps most intimately connected with the part played by the Oregonians in the California mines. This sketch will be confined more particularly to the peculiar facts of his life not common to all the pioneers. Mr. Case is particularly the man who can tell of the effects of the gold mining and California life upon Oregon and Oregonians, and he can explain a number of facts, quite apparent in their effects, but seldom or never given in their causes, of the feeling that has arisen between Californians and Oregonians.

It was an interesting incident that first directed his attention to Oregon. By William Henry Harrison, while serving as delegate to congress from the then territory of Indiana, public documents were forwarded freely to his constituents. To William M.'s father, who was an acquaintance of Harrison's, there came, among other volumes, a journal of the Lewis and Clark Expedition to the Columbia River. Over this the boy used to pore,

even while still young, and out of the crabbed volume, whose matter (certainly not the literary style) interested the whole nation, a most vivid picture was constructed of Oregon scenery, with the big trees, and the mild climate, and grass green all the winter. He made up his mind to come to Oregon when he was old enough. Before he was twenty he told his father of his intention, and was met with no opposition, the father being both considerate and intelligent; but with his consent, was given this advice: "Don't go, William, before you are married; take a wife with you." This wise and not at all unpleasant counsel young Case put into execution; hating, like all born men of action, to keep an idea long which he did not carry out in performance. By his young wife, who was from New Jersey, he was encouraged, rather than otherwise, to make the journey. She said, "My father used to dip me in the surf of the Atlantic on the New Jersey shore, and I would like to go and dip in the surf of the Pacific Ocean."

Proceedings in congress in regard to Oregon were carefully watched by Mr. Case, especial note being taken of the Linn bill, by whose provisions there were to be given a square mile of land to each man, another to his wife, and a quarter section to each child. It was well understood that the United States government could not give title to land in Oregon; but this bill was introduced as a promise of what it would do; and was in reality a test of the American spirit. Would the American people settle Oregon? If so, the United States would claim the territory.

Men like Case were found, who had a broad outlook, who understood the value of land in the Columbia or Willamette Valley, and who saw that the United States must front the Pacific as well as the Atlantic. These ideas were largely formed by the broad spirit of the west, the Ohio and Mississippi Valley, whose chief representatives were men like Doctor Linn and Colonel Benton in congress. Such men wished to live their lives on a more liberal scale than was possible even in the old west. Mr. Case, like his father, was an old line whig, and later an uncompromising republican. He says: "The United States Bank helped the country a great deal. But when, upon the expiration of its charter, the bill to grant a second charter was vetoed by President Jackson, there followed a crash such as can never be described. The country never fully recovered from the depression until the discovery of gold in 1848." Wages, he says, were twenty-five cents a day in Indiana, or \$6 a month, or \$100 a year, in special cases. Under such

circumstances, a young man saw no chance for accumulating a competence, but in Oregon he might begin with a better outlook.

During the year of 1841, when he was married at the age of twenty-one, Case was making his preparations, and on April 1, 1842, started out for Platte City, Missouri, which he reached June 10. However, he was too late to catch the Oregon train, which had left the first of the month. Going to Northern Missouri, he remained until 1844, but was on time to catch the first train of that season. The crossing of the Missouri River was made at a point about ten miles below the present City of Omaha, at a place now called Bellevue. The train of sixty wagons was organized under Captain Tharp; and a regular line of march was established, the train moving in two divisions, on parallel lines, and about a quarter to half a mile apart, to be in easy supporting distance in case of an attack by Indians. The whole train was brought together at nighttime, the wagons being driven in such a way as to form a perfect corral, inside of which the tents for the night were placed; although frequently no tents were set, especially after Nebraska was passed, where the season of 1844 was very late and stormy. With the company of General Gilliam of that year, traveling with which were R. W. Morrison, John Minto, W. R. Rees, and other well-known pioneers, the company of Captain Tharp and Mr. Case had no connection, and were in advance all the way. John Marshall, however, who went to California in 1846, and discovered gold in 1848, was a member of the train.

The three following incidents on the plains may be mentioned as presenting something new. One was a charge, or stampede, of about one thousand buffaloes. This occurred in the Platte Valley. As the two divisions were moving along deliberately, at ox-speed, in the usual parallel columns, the drivers were startled by a low sound to the north as of distant thunder. There was no appearance of a storm, however, in that or any other direction, and the noise grew louder and louder, and was steady and uninterrupted. It soon became clear that there was a herd of buffaloes approaching and on the run. Scouring anxiously the line of hills rimming the edge of the valley, the dark brown outline of the herd was at length descried, and was distinctly made out with a telescope, as buffaloes in violent motion and making directly for the train. The front of the line was perhaps half a mile long and the animals were several columns deep, and coming like a tornado. They had probably been stampeded by hunters and would now stop at nothing. The only

apparent chance of safety was to drive ahead and get out of the range of the herd. The oxen were consequently urged into a run and the train itself had the appearance of a stampede. Neither were they too quick; for the flying herds of the buffaloes passed but a few yards to the rear of the last wagons, and were going at such a rate that to be struck by them would have been like the shock of rolling boulders of a ton's weight. Mr. Case recalls measuring one buffalo that was six feet, two inches, from hoof to hump, and was over four feet from dewlap across the body.

Another most important occurrence was near Fort Platte, where a Frenchman by the name of Bisnette was in command, and in which another Frenchman, Joe Batonne, was also an important actor; something, perhaps, that has never been related, but which probably prevented the destruction of the train. It happened that at Bellevue Mr. Case found and employed a young Frenchman by the name of Berdreau, and about two hundred miles out from Omaha he was asked by this Berdreau to take in another young Frenchman, Joe Batonne, who had started with a Doctor Townsend of the train, but had fallen out with him and now was seeking another position. Batonne was therefore traveling with Case. As they were approaching Fort Platte, however, word was received from the commandant, Bisnette, to come forward no further; but if they had anyone in the train who knew the Sioux language to send him. "There is a war party of Sioux Indians here," was his information, "and I cannot understand why they should be here. The place for them at this time of the year is on the Blackfoot or Crow border, while this is in the very center of their territory. I fear they mean some mischief to the train." Batonne was the only one in the train who understood Sioux. He was accordingly sent forward, being inconspicuously dressed, along with some others, all riding their horses. The party reached Fort Platte and passed freely among the Sioux Indians. These formed an immense host, being a full party of six men to a tent, and five hundred tents, which, although crowded together irregularly, still covered a considerable space.

Batonne kept his ears open as his party rode here and there, but said nothing. Finally, as they were passing a certain tent, a young Sioux was heard to exclaim, "It always makes me itch to see an American horse; I want to ride it so bad." A chief answered him in a low voice, "Wait a few days, until the immigrants come up, and we shall have all their horses."

This was soon reported by Batonne to Bisnette, who at once sent word back to the train to wait until he had contrived some plan to send the Indians off. The plan he hit upon was this—and he told it afterwards only to Mr. Case and Joe Batonne, under strict promises of secrecy:

He called all the chiefs together with the message that he had very important news for them. They accordingly assembled and sat in solemn council. After the pipe was passed and smoked, the first whiff, as usual, being directed to the Great Spirit, Bisnette began:

“I have lived with you now many years and have always dealt honorably.”

“Yes,” answered the Sioux.

“I have never told you a lie.”

“Never,” said the chiefs.

“And have been as a brother.”

“You have been our white brother,” they said.

“Well,” he continued, “I have just heard news that is of utmost importance to you. The immigrants who come from the sunrise and will soon be here have been delayed; a man died; they buried him; he had the smallpox. I advise you, therefore, to leave this place as soon as possible, and to go to your northern border and not return for over a month.”

No news could have been more alarming to the Indians, who understood only too well what the smallpox was; not many years before infected blankets having been distributed among them through the agency of white trappers whom they had been allowed to rob, as a sort of punishment for having robbed lone trappers heretofore; and by this the whole tribe had been decimated by the scourge, very many dying, and some even of those who recovered, but were badly marked, had killed themselves. They had been told by the trappers that the smallpox pits were the mark of the devil. “The devil will get you sure now” they told them. As soon as Bisnette told these Indians that there was smallpox in the train the chiefs slid out to their tents, and within fifteen minutes the whole army was on the move, going to the north, and not returning while the immigrants of that season were passing.

The other point was the cause of the breaking up of the organization. After passing the Sioux country, fear of the Indians wore off, and the necessity of rapid travel became more and more apparent, but among the one hundred and twenty men of the train—as many at least as two to the wagon—at least one hundred, says Mr. Case, were “worthless,” or dangerously near that line. The daily labor of the march was devolved more and more upon the twenty men or so that felt the necessity of pushing on. The majority, however, often spent their evenings playing cards to a late hour, or dancing and fiddling with the young folks around the fire, and slept the next morning until called for breakfast by the women. Various ways were devised to equalize these matters; the women, among other devices, being put up to taking and burning the packs of cards, unbeknown to the men. But it finally became old—getting up 2 o’clock of a morning to hunt the cattle, which, in grazing, always attempted to go ahead of one another, and thus sometimes were spread out for several miles on the prairie. Doing this again and again, for men who would not take their turn, but were sleeping at the camp, was finally too much to be borne. Case and some others, accordingly made ready, and one morning struck out with their wagons, and before night the whole train was resolved into two sections; the jolly boys who danced and fiddled being left behind.

Arriving in Oregon, Mr. Case first stopped at Linnton, but soon went over to Tualatin Plains, and settled first near Mr. Hill’s place, now Hillsboro. In 1845, he recalls that he was employed in building the first frame barn in Oregon (W. M. C.), on the Wilkins place; and he here made the acquaintance of the old mountain men, Wilkins, Ebberts, Newell, Meek, and Walker. He was not well satisfied, however, with the locality. It was a long way over the hills and through the deep woods to the Willamette River at Linnton, or at Oregon City—Portland then being a mere camping station on the Willamette. Case wished to locate on the river, and accordingly, in 1846, moved to French Prairie, and acquired, partly by donation claim, and afterwards by purchase, two sections of land, being about one-half prairie, and the other half timber. It was three miles from Champoeg, where Newell acquired the Donald Manson place, and became town proprietor. Here he has remained, engaged in farming, saw milling, and running a tile factory, performing his duties as a citizen, being known during the war period as an unyielding union man, and occupying the responsible place during that time and later of County Judge of Marion County. He has had a family of

thirteen children, eight of whom are now living. He has twenty-three grandchildren. His life has been one of intense activity, and he has performed almost no end of hard physical work, and has borne heavy responsibilities.

He says, however, that the most intense and thrilling experiences of his life were during the season that he spent in California, and going to and returning from the mines. This was 1849. It is worthy of the most careful record, being remembered to the most minute details by Mr. Case, and affording a chapter in human experience seldom equalled. It also shows the moulding influences brought to bear upon Oregon men, who showed themselves as perhaps of the firmest fibre to be found on the Pacific slope in 1849; which is saying a great deal. It deserves to be told in the language of Mr. Case himself, and perhaps it will be. But for some reasons it will be proper to give these recollections in a somewhat condensed form, as in their entirety, as told by himself, they would compose a volume. Indeed, in his rapid and energetic conversation, with which only the most experienced stenographer could keep pace, it required him four hours to tell the whole thing—even omitting many of the details that he remembers. However, it is only an idle thought or wish to imagine that what men were years in living in the fastest period of Pacific Coast history, can ever be told in full or the life itself be reproduced. There are distinct parts to his narrative. The Voyage; the Oregon Miner's Vengeance; and The Return Overland.

THE VOYAGE.

News of the discovery of gold in 1848 was first brought to Oregon by an Oregonian by the name of Barnard. Marshall was building a mill, as is well known, for Sutter, on the American River, and after allowing the water to run through the tail ditch to sluice it out, examined the bed, as the water was again shut off, and found at the bottom of the ditch many little yellow rocks, which were highly polished and very heavy. Not being acquainted with gold, which he had an idea occurred in native form only as dust, not as nuggets, he tried pounding out one of the little yellow rocks—which instead of crumbling under the hammer, was flattened finally to the size of a saucer, and of course was made very thin. Even then, however, the true nature of the rock was not suspected; and it was not known that it was gold until Marshall had word from the United States' Assay Office at San Francisco to

which he had sent a small collection of nuggets to the value, however, of \$1,000.

By this news, Barnard, the Oregonian, was incited to return home and tell his neighbors. But at San Francisco he was detained two months, being positively refused passage on the ships for the Columbia. He believed that he was purposely hindered by parties who wished to go to Oregon and buy up all the provisions, tools, etc., to be had here, at low prices, and to sell them at San Francisco at a great advance. Finally he got a ship, and reaching Oregon late in August, the news was published, and the Oregonians, many of them just returning from the Cayuse war, formed a company, and that season broke and completed the first wagon road to California, taking the high table-land route by way of Klamath Lake, Lost Lake, the lava beds, and across the Pitt River Valley far to the eastward of Mount Shasta—or Shasta Butte, as called by the old pioneers. Mr. Case was not ready to go with the overland party, but found passage on the bark Anita, which sailed from the Columbia the middle of February. There was a large crowd of men on board, considering the size of the ship, being sixty-six in number, and the quarters were very narrow, 12 × 20 feet, and the ceiling being only 5 feet high, with two tiers of berths arranged around the sides of the apartment. The voyage, moreover, was long and tedious. As the crossing of the Columbia bar was made, with a stiff wind, Mr. Case was reminded by the breakers as they ran and tossed and finally broke upon the rocks of Cape Disappointment, of the herds of buffaloes that thundered over the plains—the movement of the waves seeming about equally swift and tumultuous. But the wind soon stiffened to a gale, the bark put to sea, and land was lost to sight; and the storm did not at last abate until they were far off the coast to the west of Vancouver Island. Then, however, with a west or north wind, that was bitterly cold, the voyage was made down to the latitude of San Francisco, but in constant storms of snow, frequently sufficient to leave as much as a foot of the article on deck over one night. When at last the clouds dispersed and a fair west wind blew, and the skies were again clear, the entire sweep of the horizon appeared as one world of water, except that far to the northeast, the very tip of Shasta, white and glittering, just jutted out of the sea. It was then seventeen hours sailing before the shore appeared in sight. Then the Golden Gate was reached and passed, and the voyage was over. It occupied a month. Sailing to Sacramento and proceeding thence to Coloma, Mr. Case, being a mechanic,

found employment at such good prices as to detain him from the mines. But the season proved to be one of excitement during which even bloodshed occurred; and Mr. Case was forced to play an important part in the program.

THE COLUMBIA RIVER MEN'S VENGEANCE.

Very soon after reaching Coloma, Mr. Case found that the community was in a broil. No open troubles had yet occurred, but there were causes of exasperation which were working rapidly to a climax. It was due primarily to a difference in system and ideas between the various elements of the people then in California. It was in fact a part of the final clash between the old Spanish system and the American; the beneficiaries of the Spanish system, or *Grandeos*, being on one side, and on the other the Oregonians, representing the American idea. It was proved in the event that men who could establish an independent government in Oregon, and were able to compel the obedience of the Cayuse Indians, were able also to make in California a deep impression for their idea of liberty. The disturbed, or rather the entirely unorganized condition of government in California, made possible the following course of events. The military government of this territory, just taken from Mexico, had not given place to a civil organization, and it was not thoroughly known what authorities were in power. Sutter had received a large grant of land, and with this was coupled certain power to enforce justice among the Indians, and he was recognized as a sort of justice of the peace; but this was of very limited extent, and there was no central authority in the whole state, unless military.

California was occupied originally by men who had received great land grants, some of which were as much as six leagues square. These men were at first Spanish-Americans, who were thus rewarded for government services. They formed a sort of nobility or aristocracy, and held their places like the baronies or counties of the old world, and their possessions were frequently of the dimensions of a county. Their ranches were on an average about twenty-five miles apart, and the ranges between were stocked with great bands of cattle. The Indians, a mild and inoffensive people, were employed as laborers and cattle drivers by the Spanish-Americans, and a genuine European feudal system was in force. The first Americans (or Germans, or English) who went to California acquired some of these

ranches, and continued the Mexican system. Only they employed it with characteristic American energy, and pushed it to a much greater extreme. With the discovery of gold and the opening of the mines, a prospect of vast profits appeared to the early Californians, who were English, or American, or German; and their first intention was to work the mines in the same manner that they worked their ranches—by the labor of the native Indian, or by importation of Mexican debtors, who could be procured very cheap. It was still the law in Mexico to put debtors in prison on the complaint of their creditors, and they could be held until the debt was paid, and the debtor himself failing in this, his son could be held. Many of these debtors were imprisoned for but trifling sums, and upon settlement with the creditors, could be practically bought by other parties almost like slaves, the purchase of the debt giving the right to hold the debtor. Hundreds of Mexicans were thus procured and sent to the mines, at a cost in some cases of but a few dollars to the purchasers, and contracted to work for some trifling sum, often not over twenty-five cents a day, in washing gold. Contract labor from Chili (W. M. C.) was also obtained, and it was estimated that by the midsummer of 1849 as many as five thousand such laborers were at work on the California placers.

But the original traders were making even more profit by trade with the contract laborers, or with the Indians who were employed to wash gold, the Indian women doing such work along with the men. When they had a little dust their natural fondness for finery was stimulated, and cheap and gaudy articles, such as shawls and shirts, were sold for dust. But the dust that was brought by the Indians was balanced by the shrewd trader with a weight which was the Mexican silver dollar, weighing just an ounce, with whose value the Indians were well acquainted. By this method of reckoning, the gold was valued the same as the silver. A shirt, for instance, which was marked to begin with at the regular price of \$3, was bought with a balance of three silver dollars in gold dust, making \$48 in actual value. Indeed the amount of dust obtained of the Indians for some of the articles was truly “fabulous.” Mr. Case recalls that a certain shawl of unusually magnificent pattern and blinding colors, which cost the trader but \$1.50, was bought by an Indian chief for his favorite daughter for \$1,500 worth of dust.

Into this flourishing condition of things the Oregonians, or Columbia River men, as they were called, entered in 1849. The most of them went into the

mines, but there were some who quickly saw that there was more profit in trading with the Indians than in digging the gold. Consequently they began setting up stores, and bought and sold goods. Competition thus began. The price of a shirt, a standard article, was forced down to \$2, that is, to two ounces of dust; and then to one ounce, and even lower. By this operation the old traders, such as Weimer and Besters, of Coloma, and Marshall, and even Sutter, were offended, as it soon became apparent to those who were intending to operate the mines on the medieval Spanish system, and by the employment of Indians and contract labor, that their whole system of trade and business was in danger of collapsing. Mr. Case is confident that the Indians were then incited against the Columbia River men, that they were told that the people from Oregon were intruders and had no business there, and were taking gold that belonged to themselves. At all events, mysterious murders began to take place in the mountains and along the mining streams. This was not greatly noticed at first, but as one after another fell and it began to be asked who was killed, it became plain that in every case the victim was a Columbia River man. The authorities, such as they were, gave the subject no attention. Sutter himself, acting as a justice of the district under his old concession, showed no concern; and the Californians, among whom were such traders as Weimer and Besters, Winters, Marshall and others, when asked for their explanation, replied that these murders were evidently committed by the Oregonians themselves; they were old trappers and mountain men of the most desperate character, and they were undoubtedly murdering and robbing one another. This the Oregonians knew to be false, and that it should be said created a presumption in their minds that the California traders were inciting the Indians to cut off the Columbia River men. This suspicion led them to talk quietly to one another and to consider what should be done. Finally a little band of about thirteen in number was organized quite secretly, and of this Mr. Case, as one of the most intelligent, was chosen virtual leader. In this band of Oregonians was Fleming Hill (usually called Flem), and Greenwood, a half-breed Crow Indian.

Affairs were brought to a crisis at last by the murder of six Oregonians, all on one bar. The first that Case heard of the affair was at the house of Besters, where he was boarding while he was working upon a building. Besters, coming in late to supper, was in great glee, saying that he had taken in \$2,500 that afternoon from the Indians. The news of the murder of the six

Columbia River men was soon abroad, and it seemed impossible but that the murderers were the Indians who had brought the dust. This was the conclusion at which the Oregonians arrived, but they would not proceed until full evidence had been procured. Meeting Hill, as if casually, on the streets of Coloma, Case told him to take the thirteen men and find and follow the trail of the murderers, whom he felt certain were the Indians of the tribe in the vicinity, belonging to that very valley, and not a distant tribe from the mountains. A circumstance favoring such a conclusion was the fact that the tribe in the valley numbered over a hundred; but those who had come in to trade at Weimer and Bester's store were only about twenty-five. The rest of the tribe, it was apparent to those acquainted with the Indians, had struck off in a body to make a trail to the mountains, to lead off suspicion, and would return, singly or in small groups, to their homes.

Case himself continued working as usual at Coloma, as it was very necessary that some one be at that point to watch the progress of affairs. He soon discovered, however, that there was a spy on him, an Indian employed at the sawmill of a Californian, Mr. Winters.

At the end of several days Hill appeared again in town. Seeing him while he was working upon the roof, Mr. Case contrived to meet him as soon as possible, and inquired what had been discovered. Hill replied, "We found various tracks from the pit where the six miners who had been killed and stripped were buried. These, taking across the river, then made one plain, broad trail out to the mountains. We followed this for two days, when it suddenly disappeared, scattering in all directions, and could be followed no longer." "Then they are not mountain Indians," said Case; "they belong right here in this valley."

This brought the Oregonians decisively to what was to be done; whether to tell their discoveries to the Californians, or Sutter, or to take vengeance into their own hands. The former course seemed entirely useless, as they felt sure that the Californians knew enough of the affair already, and had decided to let the Oregonians take care of themselves. Confirmation of the guilt of the Indians, if any were needed, was found in the report of an American who kept a horse ranch at some distance from town. He had, shortly before, seen a large number of Indians coming down the mountain side on foot, and dispersed in separate groups, and not in single file, as he had always observed them before. They were evidently that part of the band

who had led a trail off to the mountains, returning home. The Oregonians concluded, therefore, that the only way to put an end to the murders was to proceed precisely as they would out on the plains; that is, make war on the Indians irrespective of the California authorities and wipe out the tribe, if that was necessary. This was accordingly done. The tribe was found and surprised by the band of thirteen armed Oregonians. Twenty-six of the Indians were killed on the instant. No women were shot, however, though they fought the same as the men. They and six men surrendered. Greenwood shouted as the blow was struck, "Now, this is what you get for killing Columbia River men."

After the surrender, the Indian women began weeping and wailing in a manner truly heart-rending over the bodies of their dead husbands and fathers; but they acknowledged that the punishment was just, as they had killed the Columbia River men. But they pleaded that they were told to do it, which, if true, cannot but create a feeling of sympathy for them, the unfortunate dupes. After the slaughter and surrender, Hill mounted his horse and rode to Coloma, and the six Indian men were hurried after under a guard, and the women and children were driven after these by the rest of the thirteen Oregonians. It was 4 o'clock when Hill arrived. The six Indians were but a short distance behind, and hardly had been placed in prison, together with the Indian spy, at Winter's mill, who was owned as a leading partner in the crime, when the remnant of the tribe, on the run, with the Oregonians galloping behind them, came into town. It was a burning day, the mercury standing at 106° in the shade, but the distance from the scene of the slaughter, forty miles, had been covered since 11 o'clock that forenoon. The town was excited beyond measure. Men and boys to the number of hundreds gathered in a circle about the Oregonians, who drove the tribe to the shelter of a spreading pine tree, in whose shade they lay stretched on the ground. There was great complaint and deep mutterings on the part of the Californians, who said, "See what you have done! We can stay here no longer. There are eighty thousand Indians in California, and now they will drive every white man from the mines." So great indeed was the terror, that many new arrivals just up the river from San Francisco, coming to the mines from the east, turned around immediately and left. Others were scarcely dissuaded by the Oregonians themselves, or those who took their part, who declared that the trouble was now ended, if all stood together. However, it required great firmness on the part of the Columbia

River men. Sutter, to whom word was sent asking if he would try the seven Indians in prison, replied that he had better not, as he could do nothing but release the men who had been captured by the murderers from Oregon. With this message from the civil authority, such as it was, the Oregonians proceeded to try the Indians themselves, disregarding Sutter entirely. But just as the Indians were being taken from prison, and were in the midst of a thick crowd of spectators, the one known as the spy made a sudden shout, and all the seven dropped on the instant to the ground and began wriggling on all fours between the legs of the astonished bystanders; the Oregon guard instantly attempted to shoot them—which created a scene of strange and almost ludicrous excitement. Two were shot at once; two were shot after they left the crowd; the other two reached the river and began swimming away, and one of these was shot as he rose on the opposite side of the stream. What became of the seventh was not known.

The women and children were of course released, but with the warning that no Indian should again work on the bars. But this did not end the trouble. Another Oregonian was killed. The Oregonians again took the warpath, with the intention of killing all the savages they saw. One was soon found and dispatched. Eleven were next found and pursued to the cabin of an English rancher named Goff, who at first made no response to their summons at his door. But as the boys began picking the mud chinking out of the logs, and threatened to fire into the room, he opened the house and delivered the Indians, who were then immediately hanged. The tribe was then traced, and although taking refuge in the tules of a swamp of a marshy lake, were attacked by the guards on horseback, and all the men, and one woman, who was fighting with the men, were killed—making in all seventy-six of the tribe that fell, the Oregonians having lost by secret murder thirty-three. The women and children were again brought back by the Oregonians to Coloma, and were furnished by them with provisions and pans, and were allowed to wash gold and support themselves. But they secretly took their leave, and were found at length in a distant canyon of the high mountains, at the limit of snow, nearly starved, but subsisting on pine nuts and the roots of wild clover, gathered by a few old men in a lower valley. It was a man named Smith who traced them, as among the tribe were his Indian wife and child. They were again induced to return to Coloma, and now in a pitiable condition, Californians injudiciously sent them a large supply of beef and flour—a sort of food to which they were unaccustomed,

and of which they ate so greedily as to induce a virulent disease, of which fifty-two died, practically exterminating the tribe.

This was Rocky Mountain men's justice that was thus dealt out in the California mines, and of the same piece as that of the Cayuse war, or that of the general Indian war of 1855-56.

It was rough and terrible, and the Indians were the victims; but the old California system was the real cause. The attempt was made to work the mines upon a system of inequality—of proprietors and peons. The Oregonians, accustomed to a system of equality, finding themselves exposed to outlawry, and not protected from the poor savagery of the Indians, struck as they could. It is to be remembered, too, that the secret murder of thirty-two men, without any attempt at meting out justice, was an enormity that no community should brook. But that it was not mere personal vengeance, but the purpose to establish the system of free labor, and to root out the contract system, or rather the peon system, was shown by the following:

At length Case decided to go up into the mines when affairs were at last settled, and the men were working without trouble or danger; he had fallen in with a certain Major Whiting, an American by birth, who had, however, been living in Mexico, and had even served in the Mexican army against the United States. This Mexican officer was now bringing up from that region a long mule train of provisions and a company of peons whom he had taken from prison at a cost to himself on the average of but \$2 each, and had contracted with them to work for him at eighteen cents a day. Case reached the mines before him. When Whiting arrived he called upon Case first of all to ask what was the intention of the Oregon miners about allowing his debtors to work upon the bars. Case replied, "I speak only for myself; but I am opposed to it." Whiting then asked him to call a meeting to determine the opinion of the miners. Case complied. Mr. Finley of Oregon City happened to be chosen chairman of this meeting, and a young man named——, secretary. The call had been made most literally by Case's getting up upon a high rock and shouting so as to be heard all over the canyon, and then those that came first raised such a cry that it could be heard for a distance of two miles up and down, and a pistol was also fired. At such a summons, of course, the miners came to the camp in great numbers, and upon the object of the meeting being announced, resolutions

were passed unanimously to allow no working of the mines except by those who were American citizens and intended to remain in the United States; thus forbidding those who were not citizens or who came simply to work and then return to foreign homes. In the face of this decision, Whiting, of course, was obliged to leave, having no inclination to meet the Oregon riflemen; and took his Mexican debtors along with him. When Case came to inform him of the action of the meeting he showed the utmost coldness, refusing to speak except to say that he knew their action already, having been present. This resolution of the miners, backed by their reputation acquired as dead-shots and no let-up, not only decided Major Whiting to leave, but those very same resolutions forwarded to the military governor, Smith, were issued by him as a proclamation. He believed that this was the only way to restore and maintain order in the mines, the will of the mountain men not being safely disregarded. A national spirit and a certain primary justice also required that American mines and privileges for which many millions of dollars had been paid to Mexico should be preserved to American citizens and worked for the benefit of this country, and not be turned over to the speculators and contractors of the whole world.

By this proclamation the Mexican and Chelano peons were required to return to their own country. The system of equality which the Oregonians rudely, but rightly represented, was established. Thousands of miners in California who never heard of this little contest which was worked out principally by a few rugged young mountain men from Oregon, began to enjoy thenceforth the free and equal opportunity of the California mines, and California thus became Americanized, and in the end a great free state. The influence of Oregon, therefore, cannot be disregarded—although the actions of the Oregon men at the time created intense feeling against themselves, and Mr. Case considers this the source of the still persistent dislike of Oregon shown by Californians; which has hardened into a sort of tradition.

RETURN HOME.

The journey overland from the Sacramento up to the Willamette was, in 1849, one long adventure; and, on three hundred miles of the distance, that of no peaceful kind. Case had had enough of sea voyaging in going to

California, and when, in the early fall, he counted over his earnings, amounting to about \$2,800, he said that he would go home by land. The Indians of Northern California and Southern Oregon were hostile, being declared enemies to the whites. The Oregon men had, during the previous autumn, built a road through, making a long detour from the Rogue River Valley to the borders of Klamath Lake by the old Applegate route, and thence by Lost River and Lake, the Lava Beds, and the long plateau east of Mount Shasta, to Pitt River, and then two hundred miles across the chain of the Sierra Nevada Mountains to the Sacramento. The Indians of this region had ever been of the wildest and most warlike character, regarding white men as natural enemies. The famous Modocs were a remnant of one of these tribes. The large party of the Oregonians who had passed through the previous year had, to quite an extent, overawed the natives, especially in the Pitt River Valley. The party of Case consisted of only eight men, himself being chosen captain, and they carried some \$28,000 worth of dust.

Over the mountains, from the Sacramento to the Pitt River Valley, a distance of some two hundred miles, and through the Pitt River Valley, they proceeded in a leisurely manner, allowing their horses to graze at will upon the wild pea vines that grew luxuriously, and thus kept them thriving. A large number of travelers were met on the way, going to the mines, among whom was a party of strict Presbyterians from Springfield, Illinois, who always rested on the Sabbaths. It was almost universally taken by new travelers of that road that the Pitt River Valley was the main Sacramento, and they were loth to strike over the mountains as the way required.

Later upon the journey, Major Warner was fallen in with, having a party of one hundred soldiers, mostly Irishmen. With this officer pleasant conversations were held. He expressed his surprise that Case should try to go through the Indian country with but eight men, while he felt unsafe with his one hundred. But Case replied that his party was the best. They all knew the Indians were like snapping dogs, that would snap and run, while Warner's men knew nothing of Indians. The event proved only too truly Case's estimate. Warner with his one hundred men were subsequently attacked and all were destroyed (W. M. C.). Warner also had imbibed the California idea of Oregon. He once remarked to Case, "I understand that Oregon can never be an agricultural section." "Why?" asked Case. "The valleys are too narrow. I am told that there are few over a thousand yards

wide—that gives no room for ranches.” “The Willamette Valley,” said Case, “where I live is forty miles across, not counting the foothills. That gives room for ranches.”

Emerging finally out of the Pitt River Valley and entering upon the great plateau east of Shasta Butte, Case’s little party traveled so near the snow of the mountain region, and it was now late September, that the snow-banks seemed no higher above them than the tops of the trees. They were coming to the Modoc country, and the lava beds. These last were a great curiosity; the natural forts made by boiling and finally subsiding little craters of not over an acre in area, and looking so much like fortifications that many took them for the work of Indians, especially attracted attention. Here began the forced marches. For three nights and four days Case slept not a wink, and the distance covered during that time was about three hundred miles. Skirting the marshy shores of Lost Lake, where Lost River disappears, and the water is so stained with ochre as to be a deep red; and finally crossing the natural bridge, or causeway, and coming to the Klamath Basin; and crossing the Klamath River where there is a series of three low falls of about two feet high each, over some flat tabular rock formations—they finally reached the dangerous Indian country of the Rogue River. Here occurred one of the strangest Indian fights. Mr. Case’s party was not concerned in this, but was a few hours behind; yet enjoyed the results of the victory. The road at a certain point skirted along a bluff where there were many crevices and natural hiding places, and below the road ran the river. The wagon-way here was only just about wide enough for one vehicle to pass. This was a natural place for the Indians to ambush a passing party, and Case and his comrades would no doubt have suffered and probably have been cut off entirely, if it had not been that just before they reached this place, two other parties were passing, one on the way to California and the other but a few hours ahead of Case going to Oregon. The Oregon party was that of Robert Newell, consisting of thirty men, for California. As he came to this dangerous point, about four or five o’clock in the afternoon, Newell discovered that there were Indians in the crevices of the rock ready to attack him. With the capacity of a general, he divided his force so as to command the situation. Five of his men he sent forward so as to attract the Indians’ attention along the road and to draw their fire, but still to keep out of reach. A reserve of seven he stationed under cover; and in the meantime he detailed the eighteen others to pass under the shelter of the wild plum

bushes that skirted the river and faced the bluff, and under this shelter to creep up into the very midst of the Indians, select their men and shoot them down instantly—which would surprise and stampede the savages, and is the true way, so says Mr. Case, to fight the Indians.

This manouvre was executed with perfect success. The eighteen men that crept up through the brush succeeded in falling upon the Indians in the rocks, and were shooting them down before their presence was discovered; and the Indians, surprised and confused, seeing white men in front and in their midst, rushed out of their hiding places and began retreating along the face of the bluff. But just at this time the party from California, under Weston and Howard, arrived from the other direction, and hearing the firing, hurried forward, and seeing the Indians pouring out of the rocks, began discharging their rifles upon them. By this the savages were entirely demoralized. The only space left was the river itself, and into its tumultuous current they began to precipitate themselves, the miners still firing upon them as they struggled in the water, until the river ran red. The slaughter must have been very great. Yet of all this, though but a few miles away, Case knew nothing. He placed his camp for the night in a sink, so that any Indians creeping up must be seen, and kept guard himself, with his ear to the ground, so as to hear any stealthy steps approaching. He saw or heard nothing. Nevertheless, the next morning, when one of his men went to the river for water, he reported upon his return that there were the footprints of as many as five hundred Indians upon the sand bar of the river, where the night before there were none to be seen. This, Case found to be about so, and with hands on the trigger, and hearts ready for anything, the little company started out, expecting an ambushade at any moment. Case's advice to his men was, "If we are attacked, keep close together. If you divide up, we are lost." But they had not gone far before they heard a shot, and soon were greeted by the advance of Newell's men; and the next moment were met by Newell himself, who told them of the fight, and that the country was full of hostile Indians; but Weston and Howard were not far ahead, and the best thing for them was to shove forward and overtake them. Accordingly, Case shoved forward, passing hour after hour in the depths of the canyons, and hearing almost continually the Indians calling to one another from the mountains—now on this side and now on that. But still they were not attacked. They were often upon the trail of the white men, but they, too, were shoving ahead, and not until the Rogue River Valley was

passed and the Umpqua reached, was Weston's party overtaken. The junction was made early in the morning. The night before, Mr. Case, although for the third night without sleep, kept guard, and at about 2 o'clock A. M. heard a dog baying not over a quarter of a mile away. He knew this indicated the white men's camp, and in fact recognized the dog. Very cautiously approaching the camp, for fear of being mistaken for Indians, and being fired upon, the little party advanced and were recognized. Then the peril was over. The rest of the journey was made more deliberately, but though now relieved of guard duty, Mr. Case felt sleepless, and scarcely rested until some days had passed.

THE NUMBER AND CONDITION OF THE NATIVE RACE IN OREGON WHEN FIRST SEEN BY WHITE MEN.

The first estimates we have of the number of the native race in the valley of the Columbia were by Lewis and Clark, who gained their information while exploring the river from its sources in the Rocky Mountains to the Pacific Ocean. Based upon information derived from the natives, their estimate was forty thousand. This was in 1805-6.

Forty years later, Rev. C. G. Nicolay, of King's College, Oxford, and member of the Royal Geographical Society of London, writing in support of England's right to the country created by the assumed moral benefits to the natives effected by the trade influences of the Hudson's Bay Company—and, doubtless, with all the information that company could furnish—estimated the number at thirty thousand, including all the country from the California line north to 54° 40'. Noting that the second estimate is for the wider bounds, and yet twenty-five per cent. less, the numbers seem strongly to indicate that the native race was rapidly decreasing between the dates mentioned.

In looking for the causes of this decrease of population of the native race, we find at the outset diseases common to, but not very destructive to civilized life, are, nevertheless, terrible in their effects on people living so near the plane of mere animal life as were the natives of Oregon—especially those of them in the largest valleys, and near the sea,—when first seen by white men. The first American explorers received information from the Clatsop tribe of Indians during their stay near them in the winter of 1805-6, that some time previous to that a malady had been brought to them from the sea, which caused the death of many of their people. As they reached the Lower Willamette Valley, on their return eastward, they found

living evidence that the malady had been smallpox, and the remains of capacious houses within the district—now covered, or being rapidly covered, by the white race,—which indicated that the disease had swept out of existence, or caused to flee the locality, large numbers of the natives. A woman was seen by Captain Clark in the company of an old man, presumably her father, sole occupants of a building two hundred and twenty-five feet long and thirty feet wide, under one roof, and divided by narrow alleys or partitions into rooms thirty feet square. Other buildings, empty or in ruins, were found near this. This woman was badly marked with smallpox; and from her apparent age, and information the old man endeavored to convey, this disease had killed many people and frightened others away about thirty years previously.

Information received from natives by signs cannot be deemed reliable; but no writing can be plainer than the human face marked by smallpox. We have, then, from the journal of Lewis and Clark, traditional information from the Clatsop natives, and in the appearance of this woman—presumably of the Multnomah tribe—evidence of the presence of smallpox one hundred miles in the interior; and fifty years later we have from the Yakima chieftain, Kamiakin, at the Walla Walla council held by Gov. I. I. Stevens, intimations that the suffering of his people from smallpox in former times was one reason for his objection to whites' settling in his country.

Whatever truth there may be in these earlier traditions of the natives, the rapid decrease of the tribes on the Lower Columbia and in the Willamette Valley, between 1805 and 1845, and the decaying condition of those found here at the latter date, are facts which cannot be called in question. Those writers who are predisposed to blame the white man for all the results of the commercial and social contact between the races will see only the fearful and repulsive effects upon the ignorant native—supposed to be innocent—of drunkenness and debauchery, which the white man's avaricious trade and licentiousness ministered to. While, beyond question, these were destructive agencies, they, in my judgment, never were but a small moiety of the cause of the general decay of the race west of the Cascade and Sierra Nevada ranges, from Alaska to Lower California. As to the licentious intercourse between the sexes, the natives were ready and sought opportunity to participate in the destructive commerce. And their customs, which were

their only laws, left womanhood—especially widowhood—an outcast, where she was not held as a slave. It was a fact well known to pioneers yet living that a woman of bright, kindly disposition, of natural intelligence, which made her a natural leader of her sex, who was in 1840 the honored wife of the chief of one of the strongest coast tribes, and as such styled a queen by some writers, was in 1845 a leader and guide of native prostitutes, who watched and followed ships entering the Columbia from the time they crossed the bar in until they crossed out. And between opportunities of this kind, she went from camp to camp of white settlers on the Lower Columbia, thus seeking trade without the least sign of shame. The customs and usages of the race, for which the leading men were responsible, debar us of any just right to hold native womanhood responsible for a social system which deemed a female child the best trading property—valued high or low according to the status of the male portion of her family. The husband bought his wife, and might, where she did not suit, send her back to her people and claim a return of the property given for her, ostensibly as presents.^[1] This, if her family had any pride or courage, would probably lead to trouble. A native husband could dispose of an unsatisfactory wife. He could kill her by personal ill-usage,^[2] or keep her to labor for means to purchase and support another wife, or as many more as his means and desires induced him to buy.^[3]

The general relations between the husband and wife among the native races in Western Oregon were that the husband should kill the game or catch the fish, as the subsistence was from game or fish. The dressing of skins for clothing, the weaving of rush mats for camp covers or for beds, the preparation of cedar bark for clothing, nets and ropes, and the digging of roots, gathering of berries, etc., were all left to the wife and the slaves at her command, if there were any. The husband and wife seemed to have separate property rights as to themselves, and on the death of either the most valuable of it, and often all of it, was sacrificed to the manes of the dead. Sometimes living slaves were bound and placed near the dead body of a person of importance in the tribe.^[4]

Under this custom, when a leading man like Chenamus, Chief of the Chinooks, died, the body was carefully swathed in cedar bark wrappings; his war canoe or barge of state was used as his coffin, and his second best canoe, if he had two, was inverted and placed over the body as a defense

against the weather or wild beasts; a small hole was made in the lower canoe and it was placed in a slanting position to facilitate complete drainage. No money reward would induce an Indian of the Lower Columbia to enter and labor in a canoe that had been thus used for the dead. Thus the best and generally all the property worth notice was rendered useless to the living. The wife in such a case might be owner of slaves in her own right, or of a *business canoe*, and in some cases of a small canoe used on the Lower Columbia root gathering, or by the husband or sons in hunting water fowl. Such a wife becoming a widow—supposing her dead husband a chief, succeeded by a son by another of his wives, or by a brother, unfriendly and jealous of her influence,—would not be a totally helpless outcast. She would have the means of gathering her own subsistence. This, however, was above the common lot of native widows. The same custom of destroying the property of the dead prevailed amongst natives of the Willamette Valley when the American home builders first came; and it was a common sight to come upon a recently made grave and scare the buzzards or coyotes from feasting on carcasses of horses slain to the departed, the grave itself being indicated by the cooking utensils and tawdry personal adornments of the deceased. Under this custom there was no property left for distribution by the average native. A chief, living with thrifty care for his family, might leave slaves to be divided among his sons or daughters, as some few did, but often when the heirs were sons or daughters of different mothers bitter family feuds were a natural result, and the law of might decided. There was no marriage record, no law to distribute fairly what might justly belong to the widow and the fatherless, no individual ownership of land, no definite boundaries to districts claimed by tribes. Thus the whole polity of the native race here limited the exertions of the people to seeking a present subsistence, or, at the most, enough to tide them over from one season to another. Diversity of seasons has a much more intimate relation to the food supply of the wild life than to a people who have arrived at the agricultural stage of evolution. Many wild animals and feathered game have sufficient of the instinct of the passenger pigeon and squirrel of the Atlantic seaboard to induce them to migrate from districts in which their food fails as a result of untoward seasons and go to others where there is plenty.^[5] The native tribes west of the Cascade Range could not do that, and therefore must have often been reduced in numbers by bad seasons, before they were known to the white race.

The condition of the natives as to surplus food and the scarcity of large game in the Columbia Valley, as found by Lewis and Clark, shows that the normal season left the then population little they could spare. The party may be said to have run a gauntlet against starvation in their journey from the Rocky Mountains to the mouth of the Columbia. They saw few deer, and no antelope or elk. Salmon and dogs were their chief purchases from the Indians, and they ate of the latter till some of the men got to prefer dog flesh to venison. The salmon grew rancid and mouldy under the influence of the warm wet winter, and made the men sick. Their hunters, in what was forty years later the best elk range in Oregon, often failed to meet their daily wants, and sometimes killed their game so far from camp that it spoiled in the woods. So that when they learned that a whale had been thrown on the beach, at the mouth of the Nehalem, they went thirty miles, and with difficulty succeeded in the purchase of three hundred pounds of whale blubber.

They stayed at their winter camp until the latter part of March, 1806. The game had left their vicinity; they exhausted the surplus of the Indians near them, so they started on their return journey in order to reach the Chopannish "Nation," with whom they had left their horses, before the natives would leave for their spring hunt for buffalo east of the Rockies.

Under date of March 31, their journal reads: "Several parties were met descending the river in quest of food. They told us that they lived at the great rapids (the cascades), but the scarcity of provisions had induced them to come down in hopes of finding subsistence in the more fertile valley. All living at the rapids, as well as nations above, were in much distress for want of food, having consumed their winter's store of dried fish, and not expecting the return of the salmon before the next full moon—which would be on the second of May. This information was not a little embarrassing. From the falls (The Dalles) to the Chopannish Nation, the plains afforded neither deer, elk, nor antelope, for our subsistence. The horses were very poor at this season, and the dogs must be in the same condition, if their food, the dried fish, had failed." These considerations compelled the party to go into camp, and send out their hunters on both sides of the Columbia, from its north bank, opposite the quick sand (Sandy) river. Their purpose being to obtain meat enough to last them to where they had left their horses, and this they did, with the addition of some dogs and wapatos they were

able to secure from the natives by hard bargaining. The eight days they thus delayed they used to good purpose. Captain Clark, acting on information by an Indian of the existence of a large river making in from the south, which they had passed and repassed without having seen it, because of a diamond shaped island lying across its mouth, hired an Indian guide, and returning down the south shore, penetrated the Multnomah (Lower Willamette), to near the present location of Linnton, and saw evidences in ruined buildings of a much denser population than then existed there, and in the two hundred and twenty-five foot building already mentioned, saw the woman marked by smallpox. Here, also, were met Clackamas and other Indians from the falls of the Willamette.

Elk, deer, and black bear were the large game their hunters killed. Some of the deer were extremely poor. They do not mention having seen flesh of any kind in the hands or camps of natives, much less a successful native hunter of such game.^[6] Neither do they mention seeing a horse west of the Cascade Range. The receiving of one sturgeon from a native is mentioned, and some dried anchovies (smelt). But the chief wealth of this richest part of the district—the most inviting to settlers in their estimation of any they had seen west of the Rocky Mountains, is the wapato—“the product of the numerous ponds in the interior of Wapato” (Sauvie’s) Island. This was almost the sole staple article of commerce on the Columbia.

This bulb, the root of the arrowhead lily (*sagittaria variabilis*) is described by Lewis and Clark as “never out of season,” and as being “gathered chiefly by the women, who employ for the purpose canoes from ten to fifteen feet long, about two feet wide, nine inches deep, and tapering from the middle. They are sufficient to contain a single person and several bushels of roots, yet so very light that a woman can carry them with ease. She takes it into a pond where the water is sometimes as high as the breast, and by means of her toes separates this bulb from the root, which, on being freed from the mud, immediately rises to the surface of the water and is thrown into the canoe. In this manner these patient females will remain in the water for several hours, even in the dead of winter.”^[7]

This first party of the white race, thirty-six in number, were thus detained eight days gathering a sufficiency of food to make it prudent to risk a journey of ten days through the heart of the great and fertile Columbia Valley, then so devoid of large game as to make it reasonable to assume that

at some period not very remote from the time of their visit the population had slaughtered the elk, deer, and antelope, and driven the buffalo to the east side of the Rockies. The practice of large parties of the strongest tribes passing that backbone of the continent every summer to hunt this noblest of North American game is good presumptive evidence that it had at no remote period ranged in the valley of the Columbia. In 1806, then, we have the fact of a population, roughly estimated at forty thousand, ekeing out a hand-to-mouth living, from salmon chiefly, with the additions of wokus kouse (wapato and camas),—the latter much the more generally distributed from the Pacific Ocean to the summit flats of the Rocky Mountains—by going across those mountains annually for game. They had, of course, to go in parties sufficiently strong for defense against the hated, dreaded and destructive Blackfeet. The taking of such journeys proves their necessity. The tribes unable through weakness or situation to make such expeditions, as were all those of Western and Southwestern Oregon, had to gather their precarious living from the plants mentioned, grass seeds, the small native fruits, of crab apple, haw, huckleberries, cranberries, etc. Looking over a recent report of the Division of Botany, United States Department of Agriculture—a contribution from the United States Herbarium, Vol. V, No. 2, by Frederick V. Coville—I find one hundred plants described as used by the Klamath Indians, forty-six of which—as seeds, fruits or roots—were used as food by that tribe. No effort has yet been made to enumerate all the kinds of flesh, fish, and insect life used by the native race for sustenance. Lewis and Clark found evidence that the coast native sometimes resorted to searching the beach for fish cast up by the tide. The tribes on the south bank of the Snake River, and southward, used to fire the high, arid plains, where possible, and collect the crickets and grasshoppers thus killed. As late as 1844 these insects were dried and made into a kind of pemmican by pestle and mortar. The Rogue River natives used the grasshopper meal as a delectable food as late as 1848, and as late as 1878 the writer saw the chief medicine man of the Calipooyas collecting in a large mining pan the tent caterpillars from the ash trees within four miles of Salem. He asserted most emphatically that they were “close muckamuck” (good food).

For years before and after the last mentioned date the writer knew Joseph Hudson (Pa-pe-a, his native name), the lineal chief of the Calipooyas, who signed the treaty of cession of the east side of the Willamette Valley to the United States. He was the only native of Western Oregon the writer ever

talked with who seemed to comprehend, or care for, the consequences to the natives of the appropriation of ownership of the soil by the white race. He had judgment to perceive that the latter had agencies of power and of progress with which his people could not have coped, even at their best estate—which family tradition had handed down to him. This pointed to a time when his people had numbered eight thousand, as he estimated, at which time and later, to the time of his grandfather, Chief San-de-am, *his people used the circle hunt*, driving the deer to a center agreed upon, by young men as runners, the point to drive to being selected as good cover to enable the bowmen to get close to the quarry. From him the information was gained as a family tradition that about 1818 eight men, carrying packs on their backs and coming from the north, reached his grandfather's village, near where the town of Jefferson now is. They were set across, and, going southward, they conveyed to other natives that they had crossed San-de-am's river. The whites shortened the name to Santiam, as they did Yam-il to Yamhill. These eight men returned after several months and brought the first horses the Calipooyas ever saw. They sold a mare and colt for forty-five beaver skins. Joe, as he was familiarly called, a man of truth and honor, could not but mourn the fate of his people. Being in a small way his banker for small loans (he working for me) I know he was kept poor by the general worthlessness of his tribe, as it was one of the functions of a Calipooya chief to help the weak and good for nothing members of his tribe. This man honestly performed any rough and common contract labor (he would never work for day wages), carrying his burden of sorrow for his people's condition to where the wicked and low can no longer trouble. The writer received from him many hints and plain statements as to the mental capacity or mode of reasoning of the native race. Custom led them to appeal to him in troubles resulting from drunken rows. A young dandy of the tribe, getting into the power of the law for knifing a woman in a camp fray, would appeal to Joe, as chief, for financial help, with no more sense of shame than an Irish landlord who had wasted his property in riotous living would have in spunging off his former tenants to a green old age. There are many people of the white race who cannot help being participants in the results of the change of racial dominion which has taken place on the North Pacific Slope within the past century. They feel they are participants in a gigantic act of robbery. A lady whose writings on any subject it is a delight to read, in the June number of the Quarterly of the Oregon Historical Society, shows

the origin of land titles so far as the English race of men have made them. It would be an instructive addition to her able paper if some one, well read on the effects of guarded land titles in sufficient area to support family life on each allotment, would describe their influences upon a community so blessed.

Already enough has been said to indicate that prior to the visit of Lewis and Clark, the native race was in a condition of decline; that in a normal or average season a body of forty men, or less, found it difficult to avoid starvation while moving from place to place in a country estimated to contain forty thousand.

It may be admitted, because it is true though shameful, that the licentiousness of trade had sown the seeds accelerating the decay of the native race in Western Oregon, from the Columbia River to the Umpqua, and from its mouth to Fort Hall. Within these bounds, but especially near the chief lines of commerce, the missionary even had as much need of a medical book as he had of his bible, as far as the people he had come to guide in the way of life was concerned.

Abundant reason had Dr. John McLoughlin (that living copy of the great heart of Bunyan's matchless fancy) for giving welcome to the American missionaries. He knew the value of a clean mind or soul in keeping a clean and healthy body; though with a wise physician's care he kept the hospital at Vancouver open to any white sick, whom the resident doctor the Hudson's Bay Company maintained there recommended to it.

Doctor McLoughlin instituted the first hospital in Oregon for white people here prior to the overland immigration of family life from the Missouri border in 1843. The native race then were being removed rapidly by a disease they themselves called the "cold sick," which had raged among them from 1832. Some of the symptoms indicated a malarial cause, but quinine and other ague remedies had no effect upon the Indian sick. Like the plague now raging in India, it was confined, seemingly, entirely to the natives; also, almost entirely to the fishing villages on the large rivers. I have long had a theory which I confess being unable to give an intelligent reason for; that that plague had its origin in eating filth. The natives themselves found that to thrust their arrow points through the putrid liver of a deer or elk would enable them to kill their enemies by a slight wound by

blood poison. Is it not, then, possible that eating putrid flesh, or fish—the garbage cast up by the tide,—the spent salmon from the river shore, or those wallowing in death throes on its surface, could not be done with impunity?

In times of famine the natives, on the sea coast and on the rivers, did eat such food; as the inland tribes, like the Klamaths, sometimes sustained life by eating black moss, and the bark of certain trees. These latter foods, however, were not putrid.

To support the theory that this cold sick plague, which began on the Lower Columbia in 1832, and which kept the wail for the dead sounding along its banks till 1844, may have originated in poisoned food, we have the statement of Lewis and Clark's journal that salmon pemmican which they purchased in quantity at The Dalles moulded, and made the men sick, in the damp and warm winter camp, near the sea. But, whatever the cause, the effect was to depopulate, or cause the abandonment of once populous villages.

In 1805, the central seat of the Multnomahs, near the east end of Wapato (Sauvie's) Island, had a population of "eight hundred souls" noted, "as the remains of a large nation," surrounded by kindred near-by tribes, aggregating two thousand two hundred and sixty souls. In 1845 the site was without human habitation. "The dead were there," in large numbers, swathed in cedar bark, and laid tier above tier on constructions of cedar slabs about four inches thick, and often four feet wide,—causing the observer to wonder how the native, with such agencies as he possessed, could fell and split such timber. At this time so many as two hundred natives, could not be seen on the banks of the Lower Columbia, between the mouth of the Willamette and Clatsop Point, without special effort at counting the few living in the scattered villages, often separated by several sites once inhabited by large numbers apparently. This was particularly noticed on the south bank, at Coffin Rock, and the main shore, between that and Rainier. "The dead were there," in abundance, but no life but the eagle, the fish hawk, the black loon, and the glistening head of the salmon-devouring seal, then very numerous. There was a village of the Cowlitz tribe on the south bank, below where Rainier now stands. The people looked poor, ill fed, and worse clothed. The chief had come to us in the stream to invite us to camp near, exhibiting a single fresh hen's egg as

inducement. We did so, and visiting their camp had the first sight of life in a native fishing village. Some of the children were nearly naked. Though it was midwinter, the adult females, with one exception, were dressed in the native petticoat, or kilt, as second garment, the other being a chemise of what had been white cotton; one was engaged in the manufacture of cedar bark strings used in the formation of the kind of kilt she wore. The exception in the camp was a young woman of extraordinary personal beauty, a daughter of the chief family of the Cathelametts. She had recently been purchased, or espoused, by the heir-apparent of the Cowlitz chief. She seemed to be indifferent to the life around her, and shortly after was, presumably, the cause of tribal war. She was permitted a few weeks later to pay a visit to her own tribe, accompanied by an old woman of her husband's. They both joined a party of the women of her tribe in a wapato gathering expedition. The old duenna did not return,—her body was found next day near the wapato beds, horribly mutilated by a knife murder. The natural fruit of the Chinooks' polity of marriage. A short tribal war resulted.

In order to show the measure of manhood this system produced in a different phase from that of Chiefs Kalata's and Chenowith's, I will relate from memory a short visit at the lodge of the Cathelamett chief:

As one of a party of the employees of Hunt's mill, making our way from Astoria to the mill, we were approaching Cathelamett Point, the village of the tribe, on the south shore. We were hailed from the shore and found ourselves near the women and girls of the tribe, having a good time gathering the newly risen stems of the common fern and preparing it for food in earth ovens over heated rocks. They voluntarily told us they had no prepared food, but pressed us to go on to their village, and "Lemiyey" (old mother) (pronounced in a tone that conveyed love and respect) would gladly entertain us. They made no mistake in this. The old lady seemed proud of the opportunity to act as hostess, and without ostentation put her help to work and gave us a bountiful meal of fresh salmon and wapatos, and afterward put on what had evidently been often used as a robe of state, and passed back and forward in illustration of scenes she had been part of. Her son, apparently utterly oblivious to the spirit of his mother's eye and movement, continued repeating the offers to sell to us his tribal claim to the lands lying between Tongue Point and Cathelamett, that he had begun on our arrival. He was but a youth, not so tall as his stately old mother

appeared in her robe (of what I afterwards concluded was badger skins, but may have been mistaken), and he seemed mentally incapable of appreciating the influences then forming around him and his people, which appropriated their lands, while not one of them had the spirit to assert a right or raise the question of justice against the action of the white race. This was, with perhaps one exception, the cleanest, most self-respecting body of natives left on the Lower Columbia in 1845, where Lewis and Clark had, only forty years before, enumerated, by information from the natives, thirteen thousand eight hundred and thirty below the cascades and between that and the ocean. I do not believe that thirteen hundred could be found within the same limits at the latter date. There was not in all that distance, to my knowledge, a single man of the race who had the intelligence and public spirit combined to appear before the authorized agents of the United States ten years later and plead for the rights of their people in the treaties made south of the Columbia. It is questionable whether there was one in all the country north of Rogue River who would have done so of his own motion, had not the humane General Palmer and J. L. Parrish, as agents, advised the Indians to act. It is not to be understood from this that all good and all beauty had departed from the native life. When J. L. Parrish was in charge of Methodist mission property, in 1845, a white man from Oregon City appeared temporarily at Solomon S. Smith's to solicit the hand of a young woman named Oneiclam in marriage. The young woman civilly and modestly declined the honor, saying such a marriage could not secure the respect of either the man's people or the woman's, and would fail in conferring happiness. She was clean enough and good enough to secure the personal friendship and advice of Mrs. J. L. Parrish, which proved her a rare exception to her class. Such marriages soon ceased after the American home-builder assumed dominion over Oregon, the white mother thus arriving being strongly against inter-racial contracts. Doubtless the hopelessness of the struggle against race prejudice has borne heavily on the heart of many a man and woman on both sides of the race question, but the fight is over now and many a heart broken in the struggle (as I think was that of my friend Joseph Hudson, last Chief of the Calipooyas) is at rest. The responsibility for the red race is now the white man's burden. He carries it well, while already the light of a brighter day than the red man of fifty years ago could forecast is piercing the prejudices and hates of that time. The white man brought the surveying compass, the

book in which to record titles to land, another for the record of marriages, still another to record the rights of property to the results of wedlock. Schools are open to the native race and every generous mind wishes it well. But, while our sympathies may go out toward the ignorant or incompetent race in a conflict of power, we should not fail to note the services to all races rendered by the victor.

A glance at the changed conditions of life within the bounds of old Oregon: Instead of forty thousand persons ill-fed, ill-clad, living from hand to mouth, often bordering on famine, unable to support forty interesting visitors passing through their country, we have now, perhaps, fully one million, and the surplus of foodstuffs and clothing material they send out to the markets of the world, would feed well four millions. And, it is not extravagant to say that the territory to which the Oregon trail was made fifty-eight years ago will some day be made to support forty millions in comfort.

This paper, it will be observed, has dealt entirely with the native race in Northwestern Oregon, because this was the field of the race contest. The point to which the guiding minds of the white race looked as most desirable. Jefferson said, and Benton repeated: "Plant thirty thousand rifles at the mouth of the Columbia." The first exploring party sent out by the former selected as the most interesting region in which to make excursions, the district now containing the first and second chosen commercial centers, —Vancouver and Portland.

The native race amid whom these were planted were described in their average manhood as mean, cowardly and thievish. Forty years later, to this description might be added ignorant, superstitious, and utterly without public spirit. The tribes east and south from this district were, excepting those located at the great fishing centers on the Columbia, less thievish, and much more bold and spirited in self-defense.

To the recent and valuable historical description of those tribes, including the natives in what is now Western Washington, I am indebted to the life of Isaac Ingalls Stevens, by his son, Hazard Stevens, for the number of natives west, as well as east, of the Cascades treated with by Governor Stevens in 1855, just before the native leaders of the native race made their only united effort to stem the tide of inflow of the white race.

[Total number found west of the Cascades	9,712
[Total number with whom treaties were made	8,597

[Total number east of the Cascade Mountains	12,000
[Total number treated with	8,900

[Total number found in Washington Territory	21,000
[Total number treated with	17,497

For Governor Stevens' success in getting the eastern section of the native race into treaty relations he was indebted solely to the steadiness and good faith of the Nez Perces, the tribe which was always conspicuous for its care of its womanhood.

JOHN MINTO.

-
1. This custom of purchasing wives seems to have extended through many of the interior tribes, and amongst some the privilege seems not to have been confined to the men. It is related of a large war party of Sioux who, near Independence Rock, in 1842, found Messrs. Hastings and Lovejoy, and good humoredly gave them up to their fellow travelers, taking a small present of tobacco as ransom; that, seeing a grown daughter of one of the few white families of the Oregon immigrants, they came repeatedly in increased numbers to look at her, until her father was annoyed and indignant at their visits, and wrathful and threatening when he learned that the brawny braves desired to purchase the girl to give her as a present to their war chief. These grown up children of nature went off like gentlemen when informed by one who knew their customs that it was not a custom of white fathers, or the white people, to sell their daughters. [Matthieu's Reminiscences, Vol. I, No. 1, Quarterly of the Ore. Hist. Soc.] In 1844, while Gilliam's train lay over one day at Fort Laramie, for trade purposes, in close neighborhood to the tepees of a considerable camp of Sioux, three female members of the tribe visited the camp of R. W. Morrison, captain of one of the companies into which the train of eighty-four wagons was divided. The captain had two assistants,

and the Sioux women seemed to conclude that Mrs. Morrison was blessed with three husbands. Their proposition, made by signs by the two elder women, was that the third, apparently a widow, though young, was willing to give six horses for one of the younger men. It took Mrs. Morrison and the choice of the young widow some time to convince her two friends that they had made a mistake, and they departed with all outward signs of sadness over the failure of their mission. These proposals to secure connubial happiness by purchase were made, one four and the other two years, before Francis Parkman, Jr., arrived at Laramie to join a Sioux camp in order to get material for his Oregon and California Trail.

2. Late in 1844, Katata, Chief of the Clatsop Tribe, murdered his youngest wife, then but recently espoused from a leading family of the Chinooks. The latter made war upon him for the act. J. L. Parrish, in charge of the Methodist mission at the time, refused Katata his hand after learning of his deed. The brutal chief made an effort to be revenged for what he deemed an insult, but failed in his attempt.
3. The kind of chivalry the system bred was illustrated by Chief Chenowith, supposed instigator of the Cascades massacre in 1855, who was tried and condemned for fighting with the Klickitats and Yakimas. "He offered ten horses, two squaws, and a little something to every tyee, of (for) his life, boasting that he was not afraid of death, but was afraid of the grave in the ground."—[L. W. Coe in *Native Son Magazine* for February, 1900. Mr. Coe acted as interpreter at the execution].
4. In 1844 the Chief of the Wascopams died at The Dalles, and was succeeded by his brother, who was somewhat under the influence of Rev. Alvan Waller, of the Methodist Episcopal mission there. A young slave boy was bound and secured in the dead house with the body of the dead chief, in accordance with the customs of the tribe. Mr. Waller continued pleading for the release of the boy for three days and got the new chief's consent to take the boy out of his horrible situation on condition that it be done secretly and the boy taken away, so that the people of the tribe would never see him. He

was taken to Mr. J. L. Parrish, at Clatsop mission, and remained a member of his family till, in 1849, he went to the California gold mines.

5. The writer has observed this instinct manifested one season by wild ducks. The oak trees in the vicinity of his residence south of Salem, of which there were considerable areas, bore a heavy crop of acorns. The wild ducks by some means found it out, and must have by some means informed each other, as the flocks of them passing over my farm from a large beaver dam pond, where they rested at night, to their feeding grounds daily rapidly increased from day to day, and as rapidly decreased when the supply of acorns was consumed.
6. The writer has had his home fifty-five years in the Willamette Valley, and has never seen or known of a native to kill a deer. He has known one spend a day hunting to kill five wood rats.
7. This extract illustrates the condition of womanhood. Lewis and Clark write of the production of wapato in this locality as though it grew nowhere else; but it grew—yet grows—on the margins of ponds and bayous of most of the streams flowing into the Columbia west of the Cascades.

INDIAN NAMES.

Indian names and Indian words in general of the tribes of the region of the Columbia have many peculiarities, and amply repay time spent in trying to study them out. The following pretends to be only the merest beginning, and the writer has advanced only to the edges of the subject. It comprises only those names, and those meagerly and superficially, of the Lower Columbia and Willamette rivers, and these have been obtained from but two or three original sources. Those sources, however, are as reliable and intelligent as are to be found, being the recollections of Silas B. Smith, of Clatsop, and Louis Labonte, of Saint Paul, Oregon. That others may present anything they may have on the subject, and thus the stock of information be increased before those who have the original information shall have passed away, and the later investigators be left only to conjecture, is my idea in preparing this paper.

In the first place we must bear in mind a remark of Mr. Smith's, and that is that the most of the Indian names we have incorporated into our own nomenclature are more or less altered. He says that white men always like to change the original Indian somewhat. This is no doubt true. Such a disposition arises partly from the white man's egotism, which rejoices in showing that he can make a thing wrong if he pleases, and especially that an Indian name has no rights which he is bound to respect; and it arises in part from the white man's ignorance. This ignorance is shown partly in the lack of training of our ears in hearing, so that we frequently are unable to distinguish between allied letters, or sounds, such as "p" and "b," or "m," for the consonants, or between a simple vowel sound, or a compound, or diphthong. Moreover, our English language is almost hopelessly mixed up between the open, or broad continental pronunciation of the vowels, and the narrow, or closed sound; so that no one is sure that an "a" stands for "ay," as in "day," or for "ah," as in "hurrah." The Yankee peculiarity, also, of leaving off the sound of "r" where it belongs, and putting it on where it does not

belong, like saying “wo’k” for “work,” or “Mariar” for “Mariah,” has very materially changed the original pronunciation. With us, too, the pronunciation of the vowels follows a fashion, and varies from time to time according to what particular “phobia” or “mania” we may happen to be cultivating. At present the prevailing Anglomania is probably affecting our speech as well as our fashions and politics. An Indian name, therefore, that might have been rendered into very good English fifty years ago, may now, having become subject to the mutations of our fads of pronunciation, be spoken quite differently from the original tongue.

But, after making all these allowances, due to our white man’s egotism, ignorance and change of fashions, the main difficulty is in the strangeness, and, it might be said, the rudimentariness of the Indian sounds. Many, perhaps the most, of the aboriginal tones have no exact phonetic equivalent in English. We must remember that their names were originated away back in their own history, and were not affected by contact with Europeans, and have therefore a primitive quality not found even in the Jargon. This makes them more difficult, but certainly not less interesting.

In general it will be found, I think, that the aboriginal languages have the following peculiarities of pronunciation:

1. Almost all the sounds are pronounced farther back in the throat than we pronounce them. This brings into use an almost entirely different set of tones, or more exactly, it brings the various vocal sounds produced by the vocal chords to a point at a different, and to us an unused position of the throat or mouth—at a point where we can scarcely catch and arrest the sound. This makes the vowel sounds in general pectoral or ventral, and the consonant sounds guttural or palatal. As to the consonants, also, it often gives them a clucking or rasping sound not found in our language, unless in certain exclamations.
2. As a consequence of the above, the vowel sounds are not very fully distinguished from the subvowels. There is no “r” sound; if that is ever seen in an Indian name it has been interpolated there by some white mal-transliterator. “L” easily runs into “a,” and “m” into “b.” Names that upon first pronunciation seem to have an “l” turn out upon clearer sound to have a short Italian “a,” or those having an “m” to be more exactly represented by “b.” Probably the fact as to “r” is that it is identical in the

aboriginal throat with long Italian “a,” or the ah sound, as it still is with Easterners and Southerners.

3. Many of the most common aboriginal consonants, or atonic sounds, while simple to them, can be represented in English only by compounds. Such are the almost universal “ch” which can be as accurately rendered “ts,” (?) and the very common final syllable “lth.” “T” is also produced so far back in the throat as to be almost indistinguishable from “k.” It seems to be a principle to slip a short “e” sound before an initial “k,” and many names begin with a short introductory “n” sound, which is nearly a pure vowel. Of the vowels, “a” pronounced as ah is the most common, though long “a,” properly a diphthong, and long “i” a diphthong, and long “e” are very frequent. While it is true that the sounds as a rule are *in*, rather than *out*, still the pure vowels, especially “a,” and this used as a call, or cry, is often very open and pure.
4. It will probably be found, also, that the sounds are varied more or less according to meaning. With us tones are a matter of expression. With the aborigines they were probably a matter primarily of meaning. This would arise from the fact that their language was not written, but spoken, and their terms were not descriptive, but imitative. We know, for instance, that the Jargon word indicating pastime, which is “ahncuttie,” means a shorter or longer period, according as the length the first vowel is drawn out—a very long time ago admitting also of imitative gesticulation. This principle would modify the pronunciation of words, lengthening or shortening the vowels, or opening or closing them, or perhaps drawing semi-vowels out into pure vowels, and softening or sharpening the consonants.

While any expression of opinion must be very modest, still this much may be ventured: That our language has lost many valuable elements in its evolution from the spoken to the written form, especially in the matter of picturesqueness. We have, of course, gained immeasurably in directness and objective accuracy, but true evolution does not abolish any former element, but retains and subordinates it, and thereby is able to advance to new utilities. By study of a pure aboriginal language on the imitative principle, expressed only in tones, not only may the advantages of our own tongue be understood, but its deficiencies may be remedied, and a more complete language at length be developed. I am by no means of the opinion that all

that is human, or of value to civilization, is to be found in the Anglo-Saxon race, or even in the white race; but that the slow and painful struggles and ponderings of the other races are also to be wrought into the final perfect expression of humanity in society, art, literature and religion.

After the above, which is perhaps too much in the way of introduction, I will proceed with the names that I have been favored with—only wishing, if that were possible, that our aboriginal languages might be reconstructed in their entirety.

Water, says Mr. Smith, unless enclosed by land, was never named. The Columbia or the Willamette had no names. Water was to the native mind, like air, a spiritual element, and just the same in one place as another; and the circumstance that it was bounded by land made it no other than simply “chuck”—the Jargon word. If Indians ever seemed to give a name to a river, all that was meant was some locality on the shore. The idea of giving an appellation to a body of water from source to outlet never occurred to them.

The following are some of the more common Indian names of places, as given by Mr. Smith:

Chinook, or *Tsinook*—The headland at Baker’s Bay.

Clatsop, or, more properly, *Tlahtsops*—About the same as Point Adams at mouth of the Columbia.

Wal-lamt, accented on last syllable, and but two syllables—A place on the west shore of the Willamette River, near Oregon City, and the name from which Willamette is taken.

E-multh-a-no-mah—On east side of Sauvie’s Island; from which the name Multnomah is derived.

Chemukata—Chemekata, site of Salem.

Chemayway—A point on the Willamette River about two and one-half miles southward from Fairfield, where Joseph Gervais, who came to Oregon with Wilson G. Hunt in 1811, settled in 1827-28. The name Chemawa, the Indian school, is derived from this.

Champoeck—Champoege, an Indian name signifying the place of a certain edible root. The name is not the French term *le campment sable*, as naturally supposed by some, and stated by Bancroft.

Ne-ay-lem—The name from which Nehalem is derived.

Acona—Yaquina.

To these might be added, perhaps, Sealath, the name of the Indian chief after whom the City of Seattle is called. The name is of two syllables, accented on the first. This well illustrates the tendency of the whites to transpose letters, here making an “lth” into a “tle” in imitation of the French, or, perhaps, the Mexican names. Bancroft learnedly discusses the similarity between the Washington and Mexican “tl,” apparently not knowing that the Washington termination was not “tl,” but “lth.”

I will now give, in more detail, names of places, chiefs, and of some primitive articles of food, and utensils, etc.:

NAMES OF PLACES AND CHIEFS IN CLATSOP COUNTY.

Tle-las-qua—Knappa.

Se-co-mee-tsiuc—Tongue Point.

O-wa-pun-pun—Smith’s Point.

Kay-ke-ma-que-a—On John Day’s River.

Kil-how-a-nak-kle—A point on Young’s River.

Nee-tul—A point on Lewis and Clark River.

Ne-ahk-al-toun-al-the—A point on west side of Young’s Bay, near Sunnymead.

Skip-p-er-nawin—A point at mouth of Skipanon Creek.

Ko-na-pee—A village near Hotel Flavel, where the first white man in Oregon, Konapee, lived.

Ne-ahk-stow—A large Indian village near Hammond.

Ne-ah-keluc—A large Indian village at Point Adam’s, name signifying “Place of Okeluc,” or, where the *Okeluc* is made; “*Okeluc*” being salmon pemmican.

E-will-tsil-hulth—A high sand hill, or broken end of a sea ridge, facing the sea beach about west of the “Carnahan” place, meaning steep hill.

E-wil-nes-culp—A flat-topped hill against the beach about west of the “West” place, meaning “Hill cut off.”

Ne-ah-ko-win—Village on the beach about west of the “Morrison” place, where the Ohanna Creek once discharged into the ocean.

Ne-ah-coxie—Village at the mouth of Neacoxie Creek.

Ne-co-tat—Village at Seaside.

Ne-hay-ne-hum—Indian lodge up the Necanicum Creek.

Ne-ahk-li-paltli—A place near Elk Creek where an edible plant, the Eckutlipatli, was found.

Ne-kah-ni—A precipice overlooking the ocean, meaning the abode of *Ekahni*, the supreme god; called “Carnie Mountain” by the whites.

Ne-tarts—Netarts.

Nestucca.

Tlats-kani—A point in Nehalem Valley reached either by way of Young’s River, or the Clatskanie; and hence the name “Claskanine” for the branch of Young’s River, and “Clatskanie” for the stream above Westport. In saying “*tlastani*,” the Indians meant neither of those streams, but merely the place where they were going to or coming from; but with usual carelessness the whites applied it to both.

There were two lakes on Clatsop plains, one of which was called *O-mo-pah*, Smith’s Lake: and the other, much larger, *Ya-se-ya-ma-na-la-tslas-tie*, which now goes by the name of an Indian, *Oua-i-cul-li-by*, or simply *Culliby*.

The name of Cape Hancock was *Wa-kee-tle-he-igh*; *Ilwaco*, *Comcomby*, *Chenamas*, *Skamokoway*, *Kobaiway*, *Tostam*, and *Totilhum*, were chiefs.

These chiefs' names illustrate some of the peculiarities of Indian pronunciation. *Kobaiway*, who was the Clatsop chief when Lewis and Clark came, was called by them *Comowool*; *Tostam* was sometimes called *Tostab*; and *Totilhum*, "a powerful man of the people," had the Columbia River called after him by some whites. Seeing some Indians coming down the great stream with camas, etc., they asked where they obtained this: "From *Totilhum*," was the reply; meaning that they had been on a visit to the chief. Then thinking they had made a great discovery, the whites announced that the Columbia was called *Totilhum*. *Totilhum* was chief of the Cathlamets, who originally had their village on the Oregon side, near Clifton.

INDIAN NAMES OF PLACES IN THE WILLAMETTE VALLEY—SOME CHIEFS.

Ni-a-kow-kow—St. Helens. A noted Indian chief here was *Ke-as-no*. He was made a friend by the Hudson's Bay Company, was given fine presents, and entrusted with the duty of firing a salute to the company's vessels as they came in sight up the river.

Nah-poo-itle—A village just across the river from *Niahkowkow*. The name of the chief was *Sha-al*, who was very large sized.

Nah-moo-itk—A point on Sauvie's Island.

Emulthnomah—A point a little above.

Wa-kan-a-shee-shee—A point across the river from *Emulthnomah*; meant "white-headed duck," or diver.

Na-quoith—On mainland, old Fort William.

Na-ka-poulth—A pond a little above Portland, on the east side, where the Indians dug wapatoes.

E-kee-sa-ti—The Willamette Falls. The name of the tribe here was *Tla-we-wul-lo*. The name of a chief was *Wah-nach-ski*; he had a nephew, *Wah-shah-ams*.

Han-te-uc—Point at mouth of Pudding River.

Champo-ek—Champoeg, meaning the place of a certain edible root. “Ch” pronounced hard, as in “chant.”

Che-sque-a—Ray’s Landing.

Cham-ho-kuc—A point near the mouth of Chehalem Creek; Chehalem Village, in Chehalem Valley. A Chehalem chief was *Wow-na-pa*.

Chemayway—*Chemayway* was also a name given to Wapato Lake.

Cham-hal-lach—A village on French Prairie.

It will be noticed that the names above the Willamette Falls frequently begin with “Che” or “Cham,” as the coast names often begin with “Ne.” The name for Clackamas was *Ne-ka-mas*, and for Molalla, *Mo-lay-less*. The name Tualatin was *Twhah-la-ti*. At Forest Grove, near the old A. T. Smith place, was an Indian village, *Koot-pahl*. The bare hill northwest, now called David’s Hill, was *Tahm-yahn*, and an open spot up Gales’ Creek Valley was *Pa-ach-ti*. A Tillamook chief was *Tae-sahlx*. The name of a chief at The Dalles was *Wah-tis-con*. Labonte remembers several chiefs at Spokane, one of whom was *Ilmicum Spokaneee*, or the Chief of the Moon; another, *Ilmicum Takullhalth*, or the Chief of the Day, and another, *Kah-wah-kim*, or Broken Shoulder. A chief of the Colville tribe was *Skohomich*, a very old, white headed man when Labonte saw him in about 1827. A tribe at the Cascades were the *Wah-ral-lah*.

NAMES OF ANIMALS.

Coyote—Chinook, *Tallapus*; Klikitat, *Speeleyi*; Spokane, *Sincheleepp*.

Fox—Spokane, *Whawhaoolee*.

Gray wolf—*Cheaitsin*.

Grizzly bear—Spokane, *Tsim-hi-at-sin*; Chinook, *E-shai-um*.

Black bear—Spokane, *N’salmbe*; Chinook, *Itch-hoot*.

Deer—Spokane, *Ah-wa-ia*; Doe, *Poo-may-ia*, or *Poom-a-wa-ia*. (?)
Calapooia, “A big buck,” *Awaia umpaia*.

Black bear—Clackamas, *Skint-wha*.

Beaver—*Wa-ca-no*.

Deer—Chinook, *Mowitch*; Calapooia, *A-mo-quee*.

Elk—Calapooia, *An-ti-kah*.

Elk—Clatsop, *Moo-luk*.

Duck—Clatsop, *Que'ka-que'kh* (*onomatopæia*).

Geese—Clatsop, *Kah-lak-ka-lah-ma* (*ono.*).

Yellow legged goose—*Hi-hi*.

Columbia Sucker—*Kaht-a-quay*.

Smelt—Clatsop, *O-tla-hum*.

Hake—Clatsop, *Sca-nah*.

Silverside salmon—*O-o-wun*.

Blue back salmon—Clatsop, *Oo-chooi-hay*.

Large black salmon of August run—Clatsop, *Ec-ul-ba*.

Steelhead—Clatsop, *Qua-ne-ah*.

Dog salmon—Clatsop, *O-le-ahch*.

Cinook salmon (Royal Chinook)—Clatsop, *E-quin-na*, from which “*Quinnat*,” the name of the Pacific Coast salmon species has been taken.

Trout—*O-tole-whee*.

Whale—Clatsop, *E-co-lay*.

Horse—Clatsop, *E-cu-i-ton*.

Cow—Clatsop, *Moos-moos* (*ono.*).

Sheep—*Ne-mooi-too*.

Wildcat—Clatsop, *E-cup-poo*.

[Mr. Smith conjectures that the name of wildcat was given from the alarm call of the squirrel, which was hunted by

the wildcats, and whose cry indicated the presence of these animals.]

Beaver—Clatsop, *E-nah*.

Seal—Clatsop, *Ool-hi-you*.

Sea lion—Clatsop, *Ee-kee-pee-tlea*.

Sea otter—Clatsop, *E-lah-kee*.

Coon—Clatsop, *Twa-las-key*.

EDIBLE ROOTS, ETC.

Wapato—Clatsop, *Kah-nat-sin*.

Camas—Calapooia, *Ah-mees*.

Loaf of Camas—*Um-punga*.

Foxtail tuber—Clatsop, *Che-hup*; Calapooia, same.

[The *che-hup* was quite an article of commerce, being prepared by the Calapooias and traded with the coast tribes. It was black, and sweet tasting.]

Thistle root—Clatsop, *Sh-nat-a-whee*.

Blue lupine root—Clatsop, *Cul-whay-ma*.

[This was a root as large as one's finger, a foot long, and roasted, tasted like sweet potato.]

Wild tulip, or brown lily—Clatsop, *Eck-ut-le-pat-le*.

Cranberry—Clatsop, *Solh-meh*.

Strawberry—Clatsop, *Ah-moo-tee*.

Service berry—Clatsop, *Tip-to-ich*.

Blue huckleberry—Same as service berry.

Buffalo berry—Clatsop, *Smee-ugh-tul*.

Sallal—Clatsop, *Sal-lal*.

Hazel nuts—Calapoolia, *To-que-la*.

Wasps' nest—Calapooia, *An-te-alth*.

[The nest of the "yellow jackets" was dug out of the ground, the insects being first well smoked so as not to sting; and the combs, with the honey and larvæ, were considered a great delicacy. The expression (Calapooia) "*msoah quasinafoe antealth*," means "yellow jacket's nests are good eating."]

Tar weed seed—Calapooia, *Sah-wahh*.

The tar weed seeds were small and dark, ripening late. One of the objects of burning the prairie over in the fall was to ripen and partially cook these seeds, which, after the fire had passed, were left dry and easily gathered. They were ground like camas root in a mortar and then resembled pepper in appearance, but were sweet tasting.

CHINOOK AND SPOKANE NUMERALS.

One—Chinook, *ikt*; Spokane, *nekoo*.

Two—Chinook, *mox*; Spokane, *es-sel*.

Three—Chinook, *clone*; Spokane, *tsye-sees*.

Four—Chinook, *lack-et*; Spokane, *moos*.

Five—Chinook, *quin-am* or *quun-un*; Spokane, *chyilks*.

Six—Chinook, *tahum*; Spokane, *e-tecken*.

Seven—Chinook, *sinomox*; Spokane, *sees-pul*.

Eight—Chinook, *sto-ken*; Spokane, *ha-en-um*.

Nine—Chinook, *quoist*; Spokane, *h'noot*.

Ten—Chinook, *tat-ta-lum*; Spokane, *oo-pen*.

Twenty—Chinook, *tattalum-tattalum*; Spokane, *es-sel oo-pen*.

One hundred—Spokane, *en-kay-kin*.

HOUSEHOLD ARTICLES, IMPLEMENTS, ETC.

Blankets—Calapooia, *Pas-sis-si*.

Kettle—Calapooia, *Moos-moos*.

Slaves—Calapooia, *El-ai-tai*.

Haiqua shells, used for money, a small turritella, found on the northern coast.

Small *haiqua*—Calapooia, *Cope-cope*.

Tobacco—Calapooia, *E-kai-noss*.

Knives—Calapooia, *Eoptstsh*.

Powder—Calapooia, *Poo-lal-lie*.

Buffalo robe—Clatsop, *Too-i-hee*.

Wagon—Clatsop, *Chick-chick (ono)*.

High-bow Chinook canoe—Clatsop, *Esquai-ah*.

Big tub Chinook canoe—Clatsop, *Ska-moolsk*.

Small duck canoe—*Kah-see-tic(h)*.

Clackamas canoe—Clackamas, *Tse-quah-min*.

Even from the above meager list a number of interesting inquiries might be begun, but my object at present is only to make a small contribution along what I believe will prove a profitable line of investigation, hoping that others will add theirs. In this way something will be accomplished toward reconstructing the simple life of our natives, doing them a justice, and discovering, I am sure, what will be a delight and benefit both to the present and to the coming generations of our own people.

H. S. LYMAN.

DOCUMENTS.

All of the following newspaper articles were taken from a single year of the New York *Tribune*. They serve well to indicate the interest with which Oregon Territory was regarded throughout the country in 1842:

[From the *Tribune* (New York), January 18, 1842.]

FROM OREGON.

EXTRACT OF A LETTER DATED WILHAMET, FEBRUARY 19, 1842.

I will now tell you something of the people of this country. There are about seventy-five to eighty French Canadians settled in this country, principally discharged from the service of the Hudson Bay Company; there are also about fifty Americans settled in and about this country, making, perhaps, one hundred and twenty-five to one hundred and thirty male inhabitants, who are married to Indian women. They raise from their farms, on an average, from three to five hundred, and some from ten to twelve hundred bushels of wheat, besides great quantities of pease, potatoes, oats, barley, corn, etc. The Hudson Bay Company have in their employ at Fort Vancouver about one hundred and twenty-five persons, and many in several other forts both sides of the Rocky Mountains.

These people, as I said before, are married to Indian women, and live very much the same, in all respects, as our farmers at home, with the exception of not being obliged to labor half as much. They generally have from fifty to one hundred head of horses, half as many cows, and about the same number of hogs; these all take care

of themselves. The people here cut no hay and make no pastures; they do not give their hogs any feed, excepting about a month before they kill them. There is one church here, and the people have contracted for a brick church and other buildings necessary, such as a school house for the French and one for the Americans. The French have one priest here and one at Fort Vancouver.

The Americans generally attend at the mission, and, as far as I can see, the people here are as well behaved and moral as in our town. We have now a committee at work drafting a constitution and code of laws; have in nomination a governor, an attorney-general, three justices of the peace, etc.; overseers of the poor, road commissioners, etc. We have already chosen a supreme judge with probate powers, a clerk of the court and recorder, a high sheriff, and three constables; so that you see we are in a fair way of starting a rival republic on this side of the mountains, especially as we are constantly receiving recruits—those people whose time has expired with the Hudson Bay Company, and from mountain hunters coming down to settle.—*National Intelligencer*.

[From the *Tribune* (New York), Friday morning, March 24, 1842.]

Oregon is now the theme of general interest at the west. Large meetings to discuss the policy of taking formal possession of and colonizing it have been held at Columbus, Ohio, and several other places. Many are preparing to emigrate. A band of hardy settlers will rendezvous at Fort Leavenworth, and set out thence for Oregon early in May, under the command of Major Fitzpatrick.

[From the *Tribune* (New York), April 26, 1842.]

FROM OAHU.

The ship William Gray brings to Salem, Massachusetts, date from Honolulu, November 27. * * * Late intelligence from Oregon

confirms previous accounts with regard to missionary operations. From the fewness of the Indians and their migratory habits it is feared that little good can be effected among them. Many of the missionaries have become farmers and others are preparing to leave.

[From the *Tribune* (New York), March 13, 1842.]

OREGON.

The following letter is from an intelligent sea captain just returned from the Pacific Ocean. It gives information of the progress of the British appropriation of the trade and all the accessible regions of the Northern Pacific, which should be impressed upon the American public.—*Globe*.

BOSTON, May 1, 1842.

SIR: Thinking it may be interesting or important to know some of the late operations and present plans of the Hudson's Bay Company in the North Pacific Ocean, I beg leave to present to your notice some facts in relation to the same, and which have come to my knowledge from personal observation, or from sources entitled to the fullest credit.

All that extensive line of coast comprehending the Russian possessions on the Northwest Coast of America, from Mount Saint Elias south to the latitude 54° 40' north (the last being the boundary line between the Russian and American territories), together with the sole and exclusive right or privilege of frequenting all ports, bays, sounds, rivers, etc., within said territory, and establishing forts and trading with the Indians, has been leased or granted by the Russian-American Fur Company to the British Hudson's Bay Company, for the term of ten years from January, 1842; and for which the latter are to pay, *annually*, four thousand seal skins, or the value thereof in money, at the rate of thirty-two shillings each, say £6,400 sterling, or \$30,720.

In the above-named lease the Russians have, however, reserved to themselves the Island of Sitka, or New Archangel; in which place, you probably are aware, the Russians have a large settlement—the depot and headquarters of their fur trade with the Fox Islands, Aleutian Islands, and the continental shore westward of Mount Saint Elias. All the trading establishments of the Russians lately at Tumgass, Stickene, and other places within said territory, leased to the Hudson's Bay Company, have of consequence been broken up. Thus the Hudson's Bay Company not content with monopolizing the heretofore profitable trade of the Americans, of supplying the Russian settlements on the Northwest Coast, have now cut them off also from all trade with the most valuable fur regions in the world.

Whether the arrangements made between the Russians and English, above alluded to, are conformable to the treaties existing between the United States on the one part, and those nations respectively on the other, I leave to your better knowledge to determine.

With the doings of the Hudson's Bay Company at Puget Sound and the Columbia River you are doubtless fully informed; those, however, lately commenced by them in California will admit of my saying a few words.

At San Francisco they purchased a large house as a trading establishment and depot for merchandise; and they intend this year to have a place of the same kind at each of the principal ports in Upper California. Two vessels are building in London, intended for the same trade—that is, for the coasting trade; and after completing their cargoes, to carry them to England. These things, with others, give every indication that it is the purpose of the Hudson's Bay Company to monopolize the whole hide and tallow trade of California, a trade which now employs more than half a million of American capital. At the Sandwich Islands the company have a large trading establishment, and have commenced engaging the commerce of the country, with evident designs to monopolize it, if possible, and to drive off the Americans, who have heretofore been its chief creators and conductors.

I have been informed, by one of the agents of the Hudson's Bay Company, that the agricultural and commercial operations of the English at Puget Sound, Columbia River, California, and Sandwich Islands, are carried on, not actually by the Hudson's Bay Company, but by what may be termed a branch of it—by gentlemen who are the chief members and stockholders of said company, and who have associated themselves under the firm Pelly, Simpson & Co., in London, and with a capital of more than \$15,000,000!

Seeing these companies, then, marching with iron footsteps to the possession of the most valuable portion of country in the Northern Pacific, and considering, too, the immense amount of their capital, the number, enterprise, and energy of their agents, and the policy pursued by them, great reason is there to fear that American commerce in that part of the world must soon lower its flag. But, sir, it is to be hoped that our government will soon do something to break up the British settlements in the Oregon Territory, and thereby destroy the source from which now emanates the dire evils to American interests in the western world. In the endeavor to bring about that desirable object, you have done much; and every friend to his country, every person interested in the commerce of the Pacific, must feel grateful for the valuable services rendered them by you.

With great respect, your obedient servant,

HENRY A. PRICE.

HON. LEWIS F. LINN,

Senator of the United States, Washington.

[From the *Tribune* (New York), July 4, 1842.]

SCIENTIFIC EXPEDITION.

The *Missouri Reporter* of the fourteenth instant contains a notice of the expedition of Lieutenant Fremont, of the United States Topographical Engineers, to the base of the Rocky Mountains, in

the latitude of the Platte and Kansas rivers, with a view to ascertain positions and localities, to explore the face of the country, and to make the government fully acquainted with that remote and important point of our extended territory now becoming of so much greater interest from the extension of our trade to the northern parts of Mexico and California, and the settlement growing up in the valley of the Columbia River.

The line of communication now followed by immigrants, traders and travelers to the Columbia and California, is upon this route, and through the famous South Pass—a depression in the Rocky Mountains at the head of the River Platte, which makes a gate in that elevated ridge, passable in a state of nature, for loaded wagons, of which many have passed through. This examination of the country on this side of the Rocky Mountains comes at a very auspicious moment to complete our researches in that direction, and to give more value to the surveys and examinations of the Columbia River, its estuary, and the surrounding country, made by Lieutenant Wilkes in his recent voyage, and of which a full report has been made to the government. These two examinations will give us an authentic and interesting view of the important country belonging to the United States on each side of the Rocky Mountains; and taken in connection with the great scientific survey of Mr. Nicollet, commencing at the mouth of the Missouri River, and extending north to the head of the Mississippi, and to latitude 49°, and covering all the country in the forks of these two rivers, over an extent of ten degrees of latitude, will shed immense light upon the geography and natural history of the vast region west of the Mississippi River.—*Globe*.

The following is the article from the *Missouri Reporter*:

Lieutenant Fremont, of the corps of the topographical engineers, left here under orders from the war department, about ten days ago, with a party of twenty men on a tour to the Rocky Mountains. The object of the expedition is an examination of the country between the mouth of the Kansas and the headwaters of the great River

Platte, including the navigable parts of both these rivers, and what is called the Southern Pass in the Rocky Mountains, and intermediate country, with the view to the establishment of a line of military posts from the frontiers of Missouri to the mouth of the Columbia River. This expedition is connected with the proposition now before congress to occupy the territory about the Columbia River as proposed by Dr. Linn's bill.

The great River Platte is the most direct line of communication between this country and the mouth of the Columbia, and that route is known to be practicable and easy. It therefore becomes important to ascertain the general character of that river and the adjacent country, and the facilities it will be likely to afford in prosecuting contemplated settlements in Oregon. This Southern Pass, or depression in the Rocky Mountains, is near the source of the extreme branch of the River Platte, and affords an easy passage for wagons and other wheel carriages, which have frequently passed over the mountains on that route without difficulty or delay; and it is important that the latitude of this point should be ascertained, as it is thought that it will not vary much from the line established between the United States and Mexico by treaty with Spain, 1819. If this pass should fall south of that line (the forty-second degree of north latitude) it may become necessary to examine the country north of it, the line of the Yellowstone and south branch of the Columbia would, it is thought, afford the next best route.

Lieutenant Fremont, though young, has had much experience in surveys of this kind, having made the topographical survey of the Des Moines River, and having assisted the scientific Mr. Nicollet in his great survey of the Upper Mississippi. He is well supplied with instruments for making astronomical observations; for fixing the longitude and latitude of important points; and a daguerrotype apparatus for taking views of important points and scenes along the route; and, if not obstructed in his operations by large bands of wild, wandering Indians, which sometimes trouble small parties passing through that region, may be expected to impart much valuable information to the government and to the country.

Since the attention of the country has been directed to the settlement of the Oregon Territory by our able senator (Doctor Linn), and by the reports of those who have visited that region in person, the importance of providing ample security for settlers there, and of opening a safe and easy communication from the western boundary of Missouri to the Columbia River has been universally admitted.

The day is not far distant when, if the general government shall do its duty in the matter, Oregon will be inhabited by a hardy, industrious, and intelligent population, and the enterprise of our citizens find a new channel of trade with the islands of the Pacific, the western coast of this whole continent, and perhaps with Eastern Asia. Notwithstanding the many obstacles at present in the way of the settlement of this territory, emigrants are rapidly pouring into it, and only demand of government that protection which is due to all our citizens, wherever they may choose to reside. While negotiations are pending at Washington to adjust all existing difficulties between this country and Great Britain, our right to this territory should not be forgotten. At present, it may seem a small matter to the negotiations; but they should remember that every year's delay will only render the final adjustment of the disputed northwestern boundary more difficult.

We are pleased to learn that the proper authorities at Washington evince a disposition to do something toward encouraging the early occupation of Oregon by permanent American settlers. It is known that many of the islands in the Pacific have already been settled by Americans, and trading houses established, by which a large and profitable business is carried on with the Indian tribes on the northwestern coast of America, and with the East Indies and China. There is nothing to prevent trading establishments in Oregon from ultimately securing a large share of this trade, and adding much to the wealth and prosperity of the whole union.

But, regardless of these ultimate advantages, the prospect of immediate success is so great that many of our hardy pioneers are already turning their attention to the settlement of Oregon, and many years will not elapse before that territory contains a large

population. Doctor Linn has done much to urge a speedy occupation of it by permanent American residents. If Lieutenant Fremont shall be successful in his contemplated exploration of the route, and if the government shall furnish proper protection to those who shall seek a home in that distant region, the English may not only be completely dislodged from the foothold they have already acquired there, but prevented from making further inroads upon our western territory, and long monopolizing the greater part of the trade at present carried on with the Indian tribes at the Northwest and West.

[From the *Tribune* (New York), July 15, 1842.]

THE EXPLORING EXPEDITION.

The Washington correspondent of the *Journal of Commerce* writes as follows of the results of the exploring expedition:

The universal opinion here on the subject of the conduct and results of the exploring expedition is highly favorable to the officers who had charge of it. It has certainly given to Lieutenant Wilkes a reputation as an accomplished seaman and an energetic and scientific officer.

He delivered before the national institute a course of lectures, at the request of that body, on the subject of the expedition, which gave satisfaction and instruction to a numerous and enlightened auditory—among whom were Mr. J. Q. Adams, Mr. Poinsett, Mr. Woodbury, the members of the cabinet, and many scientific gentlemen from every portion of the union.

At the close of his last lecture the honorable Secretary of the Navy (Mr. Upshur) rose and addressed the assembly in the warmest terms of commendation of the successful labors and efforts of Captain Wilkes, and the officers and scientific corps under his command. He adverted to one fact which of itself spoke strongly of the skill with which the expedition had been conducted—that it had visited the remotest quarters of the globe, traversed the most dangerous

seas, surveyed the most impenetrable coasts, and encountered the vicissitudes of every climate with so little difficulty or loss.

The secretary also remarked on the immense treasures in natural science which the officers of the expedition had collected and transmitted to the government in such admirable order, and which now formed the basis of the museum of the national institute.

He commented, also, on Captain Wilkes' report upon the Oregon Territory, and declared that this report was alone an ample compensation to the country for the whole cost of the expedition. He expressed the opinion, in fine, that the results of the expedition were highly valuable and honorable, not to this country alone, but to the cause of civilization in the world.

[From the *Tribune* (New York), August 10, 1842.]

Correspondence from Washington.

Points of the treaty. * * * The boundary line agreed upon runs to the Rocky Mountains, and leaves unsettled the question of the Oregon Territory. There is nothing lost by this, for our emigrants are daily settling this question. We grow stronger there by time, and become *nearer*, too.

In the same paper of the same date as the above:

THE OREGON FUR TRADE.

This valuable traffic, which is at once the instrument of exploration and the nursery of seamen, was by the convention of 1818 suffered to be pursued promiscuously by British and Americans, and in consequence of that suicidal provision is fast being diverted from the latter to the former. Our exports of furs to Canton amounted in 1821, to \$480,000; in 1832, to about \$200,000, and in 1839, to \$56,000, showing a gradual decrease between the years 1821 and

1839 of more than seven-eighths, in the amount and value of this trade. A better practical commentary is not needed upon the effect of our legislation, and while Americans are thus annually withdrawing from this trade, Great Britain is extending her facilities for commanding it every day. Her hunters and trappers are scattered over the whole extent of the territory; nor are they content with the legitimate profits of the business. While within the British Territory the strictest provisions are made to prevent the destruction of game unnecessarily, no such precautions are enforced here, but on the contrary the Indians and others are encouraged to hunt at all seasons of the year without regard to the preservation of game. The result of this will be the extermination of the beaver and other animals killed for their fur within a few years unless the United States interferes.

[From the *Tribune* (New York), December 14, 1842.]

THE NORTHWEST COAST.

Some apprehension exists that a settled design is entertained by Great Britain of disputing our claim to the territory beyond the Rocky Mountains and the whole Pacific Coast in that quarter. A letter to the editor of the *Globe* from an officer of the United States ship Dale, belonging to the Pacific Squadron, dated "Bay of Panama, September 23, 1842," contains the following paragraph:

We sailed from Callao seventh instant in company with the frigate United States (Commodore Jones' flagship), and sloop-of-war Cyane, but we separated from them and bore up for this port on the seventh day out. Just previously to our departure two British ships-of-war (the razee Dublin, and sloop-of-war Champion) sailed thence on *secret service*! Of course this mysterious movement of Admiral Thomas elicited a thousand conjectures as to his destination, the most probable of which seemed to be that he was bound for the Northwest Coast of Mexico, where, it is surmised, a *British station* is to be located in accordance with a secret

convention between the Mexican and English governments! And it is among the *on dits* in the squadron that the frigate, the Cyane, and the Dale, are to rendezvous as soon as practicable at Monterey to keep an eye upon John Bull's movements in that quarter.

The following document is a letter by William Plumer, then United States Senator from New Hampshire. The original is in the possession of Dr. Jay Tuttle, of Astoria. Bradbury Cilley, Esqr., to whom the letter is addressed, was an ancestor of Doctor Tuttle. The copy was secured by George H. Himes, Assistant Secretary of the Oregon Historical Society.

WASHINGTON, Feby 25, 1806.

MY DEAR FRIEND: A few days since I received your kind letter of the 27th January. It had a long passage. Your letters need no apology. They always afford me pleasure, and I regret that I so seldom receive them.

The papers of the day inform you that we are doing little, except meeting, talking, and adjourning. Indeed we have little business to do that is of importance. The great, astonishing changes that so rapidly succeed one another in Europe admonishes us to deliberate much and act little in relation to our connection with them. We ought, in my opinion, to reserve ourselves for events.

I do not believe there is any fear of an invasion from any nation. I am, therefore, opposed to expending millions in fortifying our seaports. I consider the money to be thus expended worse than lost. Those works, if erected, will compel us to an annual expenditure, to a considerable amount, to support them. The revenues of the United States, for years, might be expended in erecting fortifications. This kind of a defense is in its nature unavailing. Witness the great but useless fortifications at Copenhagen in 1801; witness a single British frigate in 1776, with the tide and a gentle breeze, passing unhurt down the Hudson, by all our forts at New York. If, instead of raising money to fortify against enemies that are distant as the moon, a reasonable sum was annually and prudently applied to building a permanent navy, we should then exert our energies to a useful purpose. We should then find increasing commerce would not in every sea depend, for

protection, on the capricious whims of nations whose interests it is to capture and condemn it. But I presume we shall do nothing this session that will be permanent. In a popular government there are too many whose constant inquiries are directed rather to please, than serve, the people.

The senate to gratify France has interdicted the trade to Saint Domingo, and to restrain the President from warring against Great Britain, they have resolved that he must resort to negotiation. The fact is, the President knew Jay's rendered a former administration unpopular, and to remove the responsibility from the President to the Senate, his friends induced them in their legislative capacity to assume and exercise their executive powers and request him to negotiate,—the very measure he had adopted. I was apprised of the fact, opposed and voted against it, much against the will of my friends. I am unwilling to remove the responsibility which the constitution has imposed on him—'tis dangerous.

Yesterday I dined with the President. I felt in high glee, and enjoyed myself; but I thought the President discovered an unusual weight of care. The times, indeed, require all his vigilance.

Mr. Burr is here—but is not yet Minister to Great Britain—nor I hope never will [be].

Our weather is remarkably warm. The grass is verdant, and the birds of spring are come. I enjoy good health and spirits—but wish to return to my friends and family—though I fear I shall not for many weeks.

Make my compliments agreeable to Mrs. Cilley, and be assured that I am with much esteem yours sincerely,

WILLIAM PLUMER.

BRADBURY CILLEY, ESQR.,
Nottingham, N. H.

PUBLICATIONS

OF THE

OREGON HISTORICAL SOCIETY

SOURCES OF THE HISTORY OF OREGON

VOLUME I

NUMBER 1.—JOURNAL OF MEDOREM CRAWFORD—AN ACCOUNT OF HIS TRIP ACROSS THE PLAINS IN 1842. PRICE, 25 CENTS.

NUMBER 2.—THE INDIAN COUNCIL AT WALLA WALLA, MAY AND JUNE, 1855, BY COL. LAWRENCE KIP—A JOURNAL. PRICE, 25 CENTS.

NUMBERS 3 TO 6 INCLUSIVE.—THE CORRESPONDENCE AND JOURNALS OF CAPTAIN NATHANIEL J. WYETH, 1831-6.—A RECORD OF TWO EXPEDITIONS, FOR THE OCCUPATION OF THE OREGON COUNTRY, WITH MAPS, INTRODUCTION AND INDEX. PRICE, \$1.10.

THE PROCEEDINGS OF THE OREGON HISTORICAL SOCIETY FOR 1898-9, INCLUDING PAPER BY SILAS B. SMITH, ON "BEGINNINGS IN OREGON," 97 PAGES. PRICE, 25 CENTS.

QUARTERLY OF THE OREGON HISTORICAL SOCIETY.

CONTENTS NO. 1, VOL. I, MARCH, 1900.

THE GENESIS OF POLITICAL AUTHORITY AND OF A COMMONWEALTH GOVERNMENT IN OREGON— <i>James R. Robertson</i>	1
THE PROCESS OF SELECTION IN OREGON PIONEER SETTLEMENT— <i>Thomas Condon</i>	60
NATHANIEL J. WYETH'S OREGON EXPEDITIONS—"In Historic Mansions and Highways Around Boston"	66
REMINISCENCES OF F. X. MATTHIEU— <i>H. S. Lyman</i>	73
DOCUMENTS—Correspondence of John McLoughlin, Nathaniel J. Wyeth, S. R. Thurston, and R. C. Winthrop, pertaining to claim of Dr. McLoughlin at the Falls of the Willamette—the site of Oregon City	105
NOTES AND NEWS	70

CONTENTS NO. 2, VOL. I, JUNE, 1900.

THE OREGON QUESTION— <i>Joseph R. Wilson</i>	111
OUR PUBLIC LAND SYSTEM AND ITS RELATION TO EDUCATION IN THE UNITED STATES— <i>Frances F. Victor</i>	132
GLIMPSES OF LIFE IN EARLY OREGON— <i>Mrs. William Markland Molson</i>	158
NOT MARJORAM.—THE SPANISH WORD "OREGANO" NOT THE ORIGINAL OF OREGON— <i>H. W. Scott</i>	165

REMINISCENCES OF LOUIS LABONTE— <i>H. S. Lyman</i>	169
DR. ELLIOTT COURS— <i>Frances F. Victor</i>	189
DOCUMENT.—A Narrative of Events in Early Oregon ascribed to Dr. John McLoughlin	193
REVIEWS OF BOOKS.—“McLoughlin and Old Oregon”— <i>Eva Emery Dye</i>	207
“Missionary History of the Pacific Northwest”— <i>H. K. Hines, D. D.</i>	210
NOTE.—A Correction	212

**PRICE: THIRTY-FIVE CENTS PER NUMBER, ONE DOLLAR PER
YEAR**

UNIVERSITY OF OREGON.

THE GRADUATE SCHOOL confers the degrees of Master of Arts, (and in prospect, of Doctor of Philosophy,) Civil and Sanitary Engineer (C. E.), Electrical Engineer (E. E.), Chemical Engineer (Ch. E.), and Mining Engineer (Min. E.)

THE COLLEGE OF LITERATURE, SCIENCE, AND THE ARTS confers the degree of Bachelor of Arts on graduates from the following groups: (1) General Classical; (2) General Literary; (3) General Scientific; (4) Civic-Historical. It offers Collegiate Courses not leading to a degree as follows: (1) Preparatory to Law or Journalism; (2) Course for Teachers.

THE COLLEGE OF SCIENCE AND ENGINEERING.—

A.—The School of Applied Science confers the degree of Bachelor of Science on graduates from the following groups; (1) General Science; (2) Chemistry; (3) Physics; (4) Biology; (5) Geology and Mineralogy. It offers a Course Preparatory to Medicine.

B.—The School of Engineering: (1) Civil and Sanitary; (2) Electrical; (3) Chemical.

THE SCHOOL OF MINES AND MINING.

THE SCHOOL OF MEDICINE at Portland.

THE SCHOOL OF LAW at Portland.

THE SCHOOL OF MUSIC.

THE UNIVERSITY ACADEMY.

Address

THE PRESIDENT,
EUGENE, OREGON.

TRANSCRIBER'S NOTES

- Obvious typographical errors have been silently corrected.
- Variations in hyphenation and accents have been standardised if a predominant form was found within the text, but all other spelling and punctuation remains unchanged.

*** END OF THE PROJECT GUTENBERG EBOOK THE QUARTERLY
OF THE OREGON HISTORICAL SOCIETY, VOL. 1, NO. 3,
SEPTEMBER, 1900 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.